

IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)

Case No: 2026-066952

WILBUR WILLIAM MATTHEE

Applicant

and

BRUNO FERNANDES & OTHERS

Respondents

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Compiled by: WILBUR WILLIAM MATTHEE (Applicant — Self-Represented)

Case No: 2026-066952 | OCJ Reference: HCGS953346

Hearing: 25 March 2026 at 10:00 | Western Cape High Court
Email: info@ethichawks.co.za | Tel: 069 635 1435

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No: 2026-066952

In the matter between:

WILBUR WILLIAM MATTHEE (Identity Number: 8909035151087)	Applicant
and	
BRUNO FERNANDES (Lead Independent Director)	First Respondent
DR NKATEKO MUNISI (Chairperson: Social and Ethics Committee)	Second Respondent
MS ALICE LE ROUX (Chairperson: Audit and Risk Committee)	Third Respondent
MR GERALD VAN WYK (Chief Executive Officer)	Fourth Respondent
LSM MPUMLWANA (Group Company Secretary)	Fifth Respondent
AFROCENTRIC INVESTMENT CORPORATION LIMITED (Registration No. 1988/000570/06, JSE: ACT)	Sixth Respondent

PRACTICE NOTE

Urgent Section 162 Delinquency Application – Rule 6(12)

Nature of the application

This is an urgent application in terms of Rule 6(12) of the Uniform Rules of Court for:

- (a) A primary declaratory finding under **Section 60(3) of the Employment Equity Act 55 of 1998** that each of the First to Fourth Respondents is deemed to have contravened the EEA, constituting an independent and self-standing statutory basis for the delinquency relief sought;
 - (b) An order declaring the First to Fifth Respondents **delinquent directors and officers** in terms of Section 162(5)(c) and/or (d) of the Companies Act 71 of 2008, for a period not less than seven years, alternatively placing them under probation in terms of Section 162(7);
 - (c) Consequential **damages** jointly and severally against the First to Fifth Respondents, in an amount to be determined by this Honourable Court; and
 - (d) Costs on the **attorney-and-client scale**.
-

Basis for urgency

The Applicant faces confirmed eviction from his residence at 15 Bellevue Street, Voorbrug, Cape Town, 7100, at the end of March 2026. He has no income, no running water since January 2026, and his SANC registration has lapsed — rendering him unable to practise as a Registered Nurse. He carries a formal clinical diagnosis of severe depression and PTSD confirmed by a specialist psychiatrist. The urgency is **not self-created** — it flows from nine formal escalations to the Respondents, including a Priority 1 Material Risk Report placed before the Board on 9 December 2025 with 38 attachments, and formal engagement with 11 regulatory and statutory institutions, all

of which failed to provide redress. Substantial redress is not possible in the ordinary course.

Status of the matter

The application is **unopposed**. No notice of intention to oppose has been filed. The Respondents have been notified of this application by email at their personal and corporate email addresses simultaneously with the filing of this application.

Issues for determination

The following issues arise for determination by this Honourable Court:

#	Issue	FA Reference
1	Urgency — Rule 6(12)(b): whether the Applicant cannot be afforded substantial redress in due course	FA paras 46–46.5
2	Standing — s162(2)(a): shareholder with adequate interest under s162(4)	FA paras 4–8 and 7A.1–7A.4
3	Primary standalone ground — Section 60 EEA deemed contravention as self-standing basis for delinquency	FA Section 9A (paras 37A–37J)
4	Director delinquency — s162(5)(c) and/or (d): gross negligence, wilful misconduct, breach of trust	FA Sections 7, 10, 11
5	Pattern of institutional silence across nine escalations spanning 9 December 2025 to 14 March 2026	FA Section 10 (paras 38–41)

6	Quantum of consequential damages and interest from 23 July 2025	FA Sections 8–9, NOM prayer 9–10
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Key annexures

The following Annexures are identified as critical to the determination of this application and are marked with ★ in the Founding Affidavit. The Honourable Judge is respectfully directed to these documents as a priority:

- (a) **"Annexure B"** — July 2025 payslip confirming Normal Earnings of R36,588.81 and the unlawful deduction of R14,811.77 (40.47%) — the primary statutory violation;
- (b) **"Annexure C" ★** — GRC1: Priority 1 Material Risk Report with 38 attachments, including at Section 4A an explicit warning of personal director liability under Section 60 of the EEA — the document that placed all Individual Respondents on express formal and statutory notice;
- (c) **"Annexure D5"** — Formal Notice of Resignation Due to Automatically Unfair Constructive Dismissal, invoking Section 186(1)(e) and Section 187(1)(h) of the Labour Relations Act, delivered to directors personally at their personal email addresses on 12 December 2025;
- (d) **"Annexure D9" ★** — Final Good Faith Notice delivered to each Individual Respondent via the Company Secretary on 14 March 2026, confirming pre-filing notice of this application;

- (e) **"Annexure E" ★**— CRO Suppression Email of 18 December 2025 directing the Applicant to cease communicating with the Board — primary evidence of active institutional suppression; and
 - (f) **"Annexure F" ★**— Cheryl-Dawn Modern written admission of the B-BBEE naming convention mechanism dated 19 January 2026 — primary fronting evidence, confirming the scheme in the Sixth Respondent's own words.
-

EEA Section 60 — primary standalone ground — note to the Court

The Applicant draws this Honourable Court's attention to **Section 60 of the Employment Equity Act 55 of 1998** as the primary and self-standing statutory ground for the delinquency relief sought, operating in conjunction with and independently of the Section 162 application.

The P1 Material Risk Report (Annexure C) constitutes formal notification under Section 60(1) of the EEA. At Section 4A of that report, headed “Legal and Regulatory Risks,” the document stated with precision: *"Personal liability for directors under Section 60 of EEA."* The Individual Respondents were not merely placed on notice of underlying conduct — they were placed on notice of the specific statutory mechanism that would render them personally liable if they failed to act.

Their failure to take any step — investigative, corrective, or interim — across nine escalations spanning more than three months triggers the deeming provision of Section 60(3): the Sixth Respondent, and by extension the Individual Respondents in their

directorial capacities, are deemed to have contravened the EEA. That deemed contravention constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and (d). Full argument is set out in Section 9A of the Founding Affidavit (paragraphs 37A to 37J).

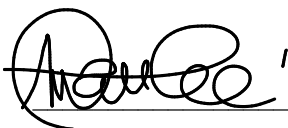
Compliance

- The application bundle is indexed and paginated.
 - All Annexures (“A” to “G”, including sub-annexures D1 to D9) are attached and referenced in the Founding Affidavit.
 - The Respondents have been served by email at their personal and corporate email addresses.
 - The Founding Affidavit was signed and sworn before a Commissioner of Oaths on 19 March 2026.
 - The Applicant is self-represented.
-

Estimated duration

30 minutes (unopposed motion).

DATED at **CAPE TOWN** on this **24th** day of **MARCH 2026**.



WILBUR WILLIAM MATTHEE

APPLICANT – SELF-REPRESENTED

15 Bellevue Street, Voorbrug, Cape Town, 7100

Email: info@ethichawks.co.za | Tel: 069 635 1435

Case No: 2026-066952

OCJ Reference: HCGS953346

Hearing: 25 March 2026 at 10:00

Court: Western Cape High Court, Keerom Street, Cape Town

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No: 2026-066952

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

Identity Number: 8909035151087

and

BRUNO FERNANDES

First Respondent

(Lead Independent Director)

DR NKATEKO MUNISI

Second Respondent

(Chairperson: Social and Ethics Committee)

MS ALICE LE ROUX

Third Respondent

(Chairperson: Audit and Risk Committee)

MR GERALD VAN WYK

Fourth Respondent

(Chief Executive Officer)

LSM MPUMLWANA

Fifth Respondent

(Group Company Secretary)

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Sixth Respondent

(Registration No. 1988/000570/06)

NOTICE OF MOTION

NOTICE TO RESPONDENTS

TO: THE FIRST TO SIXTH RESPONDENTS

TAKE NOTICE that the Applicant intends to make application to this Honourable Court, on Wednesday, 25 March 2026, or as soon thereafter as the matter may be heard, at a 10:00 (ten) am or time to be determined by the Registrar, for the relief set out below.

TAKE FURTHER NOTICE that this application is brought as a matter of urgency in terms of Rule 6(12) of the Uniform Rules of Court, for the reasons set out in the Founding Affidavit.

TAKE FURTHER NOTICE that the Applicant's Founding Affidavit, together with all Annexures thereto, is served on you simultaneously herewith and forms the evidentiary basis for the relief sought.

TAKE FURTHER NOTICE that if you intend to oppose this application you are required to:

- (a) Deliver a notice of intention to oppose this application to the Applicant at 15 Bellevue Street, Voorbrug, Cape Town, 7100 and / or by email to info@ethichawks.co.za, within the time period directed by the Court, having regard to the urgent nature of the matter;
- (b) Thereafter deliver your answering affidavit, if any, to the Applicant at the aforesaid address within the further period directed by the Court.

TAKE NOTICE FURTHER that if you fail to file a notice of intention to oppose, or fail to deliver an answering affidavit within the time allowed, the matter will be enrolled as an unopposed application and the Applicant will move for the relief set out below.

RELIEF SOUGHT

The Applicant respectfully moves for an order in the following terms:

PART A — URGENCY

1. That this matter be heard as a matter of urgency in terms of Rule 6(12)(b) of the Uniform Rules of Court on Wednesday, 25 March 2026, 10:00 (ten) am or as soon

thereafter as the matter may be heard, and that the usual forms, time periods and service requirements to be dispensed with to the extent necessary.

PART A1 — PRIMARY STATUTORY FINDING

This Part seeks a primary standalone declaratory finding that constitutes the self-standing statutory foundation for the delinquency relief in Part B below.

2. That this Honourable Court declare, as a primary and standalone finding, that:

2.1 Each of the First to Fourth Respondents received formal notification of alleged discriminatory and retaliatory conduct in terms of Section 60(1) of the Employment Equity Act 55 of 1998 ("the EEA") upon their receipt of the Priority 1 Material Risk Report dated 9 December 2025 (Annexure "C" to the Founding Affidavit);

2.2 Each of the First to Fourth Respondents failed to take the steps required by Section 60(2) of the EEA following receipt of that notification, across nine formal escalations spanning 9 December 2025 to 14 March 2026;

2.3 By operation of Section 60(3) of the EEA, the First to Fourth Respondents, in their individual capacities as directors of AfroCentric Investment Corporation Limited, are deemed to have contravened the EEA; and

2.4 That deemed contravention, committed by directors in the course of managing the governance affairs of a JSE-listed public company, constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and Section 162(5)(d) of the Companies Act 71 of 2008 ("the Act"), and provides an independent and self-standing statutory basis for the delinquency orders sought in Part B below.

PART B — DELINQUENCY

3. That BRUNO FERNANDES, in his capacity as Lead Independent Director of AfroCentric Investment Corporation Limited (Registration No. 1988/000570/06) ("the Company"), be declared a delinquent director in terms of Section 162(5)(c) and/or

Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;

4. That DR NKATEKO MUNISI, in his capacity as Chairperson of the Social and Ethics Committee of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
5. That MS ALICE LE ROUX, in her capacity as Chairperson of the Audit and Risk Committee of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
6. That MR GERALD VAN WYK, in his capacity as Chief Executive Officer of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
7. That LSM MPUMLWANA, in her capacity as Group Company Secretary of the Company, be declared a delinquent officer in terms of Section 162(5)(c) and/or Section 162(5)(d), read with Section 162(2)(d), of the Act, with the delinquency declaration to take effect for a period not less than seven years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;

PART B (ALTERNATIVE) — PROBATION

In the event that this Honourable Court does not grant the relief in Part B above, the Applicant moves alternatively:

8. That the First to Fifth Respondents, or any one or more of them, be placed under probation in terms of Section 162(7) of the Act, on such terms and conditions as this Honourable Court deems appropriate, for a period not less than one year;

PART C — CONSEQUENTIAL RELIEF

9. That the First to Fifth Respondents, jointly and severally, the one paying the other to be absolved, be ordered to pay the Applicant's damages arising from their failure to act, in an amount to be determined by this Honourable Court, having regard to:
 - 9.1 The unlawful payroll deduction of R14,811.77 effected without the Applicant's consent and in contravention of Section 34(2) of the Basic Conditions of Employment Act 75 of 1997;
 - 9.2 The ongoing financial harm, debt spiral, and exposure to predatory lending practices suffered as a direct and proximate consequence of the Respondents' failure to act;
 - 9.3 The confirmed eviction of the Applicant at the end of March 2026;
 - 9.4 The lapse of the Applicant's South African Nursing Council registration and consequential inability to practise as a Registered Nurse; and
 - 9.5 Such further harm as may be proved at the hearing.
10. That interest be paid on any amount awarded in terms of prayer 9 above at the prescribed rate in terms of the Prescribed Rate of Interest Act 55 of 1975, calculated from 23 July 2025 to the date of final payment;

PART D — COSTS

11. That the First to Fifth Respondents, jointly and severally, be ordered to pay the costs of this application on the attorney-and-client scale, having regard to the sustained

institutional bad faith, the active suppression of governance escalations, and the Respondents' failure to respond to the Final Good Faith Notice dated 14 March 2026;

PART E — FURTHER AND/OR ALTERNATIVE RELIEF

12. That this Honourable Court grant such further and/or alternative relief as it deems just and equitable in the circumstances.

BASIS FOR URGENCY — RULE 6(12)(b)

The grounds upon which it is submitted that this application is urgent, and that the Applicant cannot be afforded substantial redress at a hearing in due course, are fully set out in the Founding Affidavit. In summary:

- (a)** The Applicant faces confirmed eviction from his residence at 15 Bellevue Street, Voorbrug, Cape Town, 7100, at the end of March 2026 — within days of the filing of this application;
- (b)** The Applicant has no income, no running water, and personal property has been physically removed by creditors as informal security for debt incurred as a direct consequence of the unlawful deduction;
- (c)** The Applicant's South African Nursing Council registration has lapsed, rendering him unable to practise as a Registered Nurse, with every week of delay extending an irreversible professional harm;
- (d)** The urgency is not self-created — it flows entirely from the Respondents' sustained institutional silence and their failure to respond to the Final Good Faith Notice delivered on 14 March 2026; and

(e) A hearing in due course will not afford the Applicant substantial redress, as the consequences of confirmed homelessness and SANC deregistration will have become irreversible before a normal motion court date can be obtained.

FOUNDING AFFIDAVIT

This Notice of Motion is supported by the Founding Affidavit of WILBUR WILLIAM MATTHEE, deposed to on 19 March 2026, together with the Annexures marked "A" to "G" thereto, all of which are served and filed simultaneously herewith.

TO BE SERVED ON

BRUNO FERNANDES (First Respondent)

Lead Independent Director c/o AfroCentric Investment Corporation Limited 37 Conrad Street, Florida Glen, Roodepoort, 1709

DR NKATEKO MUNISI (Second Respondent)

Chairperson: Social and Ethics Committee c/o AfroCentric Investment Corporation Limited 37 Conrad Street, Florida Glen, Roodepoort, 1709

MS ALICE LE ROUX (Third Respondent)

Chairperson: Audit and Risk Committee c/o AfroCentric Investment Corporation Limited 37 Conrad Street, Florida Glen, Roodepoort, 1709

MR GERALD VAN WYK (Fourth Respondent)

Chief Executive Officer c/o AfroCentric Investment Corporation Limited 37 Conrad Street, Florida Glen, Roodepoort, 1709

LSM MPUMLWANA (Fifth Respondent)

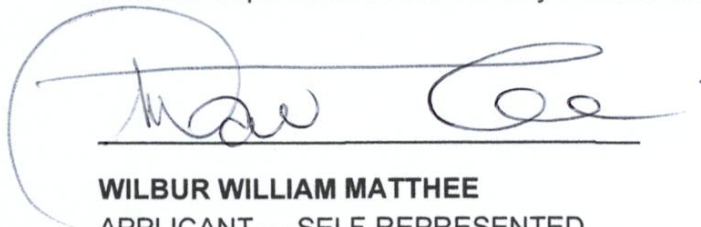
Group Company Secretary c/o AfroCentric Investment Corporation Limited 37 Conrad Street, Florida Glen, Roodepoort, 1709

AFROCENTRIC INVESTMENT CORPORATION LIMITED (Sixth Respondent)

Registration No. 1988/000570/06 37 Conrad Street, Florida Glen, Roodepoort, 1709

Service to be effected through the Sheriff for the district of Florida / Roodepoort, Gauteng, upon allocation of a case number by the Registrar.

Dated at Cape Town on this 19th day of March 2026.

A handwritten signature in blue ink, appearing to read 'W. Matthee', is written over a horizontal line. A large, light blue circular stamp is partially visible behind the signature.

WILBUR WILLIAM MATTHEE

APPLICANT — SELF-REPRESENTED

15 Bellevue Street, Voorbrug, Cape Town, 7100

Email: info@ethichawks.co.za | Tel: 069 635 1435

**IN THE HIGH COURT OF SOUTH AFRICA
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Case No: 2026-066952

In the matter between:

WILBUR WILLIAM MATTHEE
Identity Number: 8909035151087

Applicant

and

BRUNO FERNANDES
(Lead Independent Director)

First Respondent

DR NKATEKO MUNISI
(Chairperson: Social and Ethics Committee)

Second Respondent

MS ALICE LE ROUX
(Chairperson: Audit and Risk Committee)

Third Respondent

MR GERALD VAN WYK
(Chief Executive Officer)

Fourth Respondent

LSM MPUMLWANA
(Group Company Secretary)

Fifth Respondent

AFROCENTRIC INVESTMENT CORPORATION LIMITED
(Registration No. 1988/000570/06)

Sixth Respondent

FOUNDING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE,

*WWM
BJM*

do hereby make oath and state:

1. INTRODUCTION

1. I am an adult male and the Applicant in this matter. The facts contained herein are, unless otherwise stated, within my personal knowledge and are true and correct.
2. This is an application in terms of Section 162 of the Companies Act 71 of 2008 ("the Act") for an order declaring the Respondent directors delinquent, alternatively placing them under probation, together with a primary declaratory finding under Section 60(3) of the Employment Equity Act 55 of 1998 ("the EEA") and consequential relief.
3. This application arises from the Respondents' failure to act upon a formally escalated Priority 1 (P1) Material Risk Report delivered on 9 December 2025, which placed each named Respondent on express individual notice of ongoing discrimination, victimisation, an unlawful payroll deduction, and imminent regulatory exposure — including explicit notification of personal director liability under Section 60 of the EEA.

2. APPLICANT'S STANDING AND ADEQUATE INTEREST

4. I am a shareholder of AfroCentric Investment Corporation Limited, Registration Number 1988/000570/06, a public company listed on the Johannesburg Stock Exchange (JSE: ACT) ("the Company"), holding a direct interest in its governance and compliance documented in Annexure "A".
5. As a shareholder, I am entitled to bring this application in terms of Section 162(2)(a) of the Act, which permits any person who, at the time of the application, holds a beneficial interest in any securities issued by the company to apply for an order declaring a director delinquent or under probation.
6. My interest is not merely financial but extends to ensuring that the Company is managed in accordance with applicable legal and governance standards, which directly affects the value and integrity of my shareholding.

W. W. M.
Bom

7. The Respondents' conduct, as set out below, directly affects the Company's governance, risk exposure, and compliance posture, thereby affecting my rights and interests as a shareholder.

7A. In terms of Section 162(4) of the Act, this Honourable Court must be satisfied that the Applicant has an adequate interest in the relief sought before granting a delinquency order. I respectfully submit that adequate interest is established on the following basis:

7A.1 Adequate interest under Section 162(4) is not limited to the rand value of the shareholding. It encompasses the governance, compliance, and regulatory exposure of the Company as it affects all shareholders. The Supreme Court of Appeal has confirmed that Section 162 is a remedy designed to protect the company, its shareholders, and the public from the consequences of delinquent directorship — interests that transcend the financial value of any individual shareholding;

7A.2 The Respondents' failure to act has exposed the Company to a potential B-BBEE fine of approximately R580,000,000 — representing 10% of annual group turnover — under the B-BBEE Act, an active B-BBEE Commission investigation (Case No. 5/02/2026), and an active High Court delinquency application. These are material risks to the Company's value, reputation, and regulatory standing that affect every shareholder including the Applicant;

7A.3 The Applicant is not a mere nominal shareholder bringing a technical application. The Applicant is the person who suffered the direct harm flowing from the Respondents' delinquency, escalated that harm formally nine times to the board, and was met with institutional silence and active suppression. The direct causal link between the Respondents' delinquency and the Applicant's documented humanitarian crisis — confirmed eviction, lapsed professional registration, psychiatric harm — constitutes an adequate and compelling interest in the relief sought; and

Wum
B Jm

7A.4 The application is brought in good faith in the interests of the Company, its shareholders, and the integrity of listed company governance — not for personal advantage beyond the legitimate consequential relief sought.

8. Proof of my shareholding is annexed hereto marked "Annexure A".

3. THE RESPONDENTS

9. The Respondents are directors and officers of AfroCentric Investment Corporation Limited, Registration Number 1988/000570/06, cited in their respective capacities as set out in the caption above. Their business address for service is c/o AfroCentric Investment Corporation Limited, 37 Conrad Street, Florida Glen, Roodepoort, 1709.
10. At all material times, the Respondents owed fiduciary duties in terms of the Companies Act, including duties of care, skill, diligence, and good faith.

4. LEGAL FRAMEWORK

11. In terms of Section 76 of the Companies Act, directors are required to: act in good faith and for a proper purpose; act in the best interests of the company; and exercise the degree of care, skill, and diligence reasonably expected of a person in their position.
12. Section 162 of the Act provides that a director may be declared delinquent or placed under probation where their conduct falls below the required standard, including conduct constituting gross negligence, wilful misconduct, or reckless conduct. A delinquency declaration takes effect for the lifetime of the person unless the court determines a shorter period under Section 162(10).

5. BACKGROUND FACTS

13. During or about July 2025, I became aware of a payroll deduction in the amount of R14,811.77, amounting to approximately 40.47% of my normal earnings of R36,588.81 for that month.

*Wum
Bm*

14. This deduction was effected without my consent and without lawful justification, in contravention of Section 34(2) of the Basic Conditions of Employment Act 75 of 1997, which caps permissible deductions at 25% of normal earnings. The deduction exceeded this cap by 15.47 percentage points.
15. Proof of the deduction is annexed hereto marked "Annexure B".
16. The matter was formally escalated and reduced to a Priority 1 (P1) Material Risk Report, indicating the highest level of urgency and governance concern.
17. A copy of the P1 Material Risk Report is annexed hereto marked "Annexure C".

6. FORMAL ESCALATIONS AND NOTICE

18. Following the initial escalation, I submitted multiple formal communications to relevant governance bodies, including risk structures, executive leadership, and board-level oversight channels.
19. These communications clearly set out the nature of the risk, the unlawful conduct, and its implications for the Company and for each named Respondent individually.
20. Copies of these communications are annexed collectively marked "Annexure D1 to D9", comprising:
 - D1. Formal Protected Disclosure to executive leadership, including the Fourth Respondent (CEO), dated 4 December 2025;
 - D2. Executive de-escalation response from Bongani Luvuno on behalf of the Fourth Respondent, dated 5 December 2025;
 - D3. GRC1: Priority 1 Material Risk Report submitted to board-level oversight, including the First, Second, Third, and Fifth Respondents, dated 9 December 2025 (38 attachments);
 - D4. GRC2: Board update attaching the Sixth Respondent's CCMA opposing affidavit, dated 11 December 2025;
 - D5. Formal Notice of Resignation Due to Constructive Dismissal delivered to the Board via the Company Secretary, dated 11 December 2025;

WJH
BJM

- D6.** GRC3: Maximum Severity GRC Escalation, including audio recording, dated 16 December 2025;
 - D7.** Formal request for statutory termination documents (UI-19), correspondence dated 7 to 19 January 2026;
 - D8.** SAHRC Comprehensive Update documenting the failure of 11 institutions, dated 13 March 2026; and
 - D9.** Final Good Faith Notice delivered to the Individual Respondents via the Company Secretary, dated 14 March 2026.
- 21.** The Respondents were thereby placed on formal notice of: the unlawful deduction; the governance implications; and the ongoing harm being suffered.
- 22.** Despite these escalations, no substantive response or corrective action was taken by any of the individual Respondents.
- 23.** In certain instances, I was actively discouraged from escalating the matter further.
- 24.** Evidence of such instruction is annexed hereto marked "Annexure E", being an email from the Sixth Respondent's Chief Risk Officer dated 18 December 2025 directing me to cease communicating with the directors.

7. FAILURE TO ACT

- 25.** Notwithstanding their knowledge of the P1 Material Risk, the Respondents failed to: initiate or ensure a proper investigation; suspend or remedy the unlawful conduct; engage meaningfully with the reported risk; or take any reasonable steps expected of directors in their position.
- 26.** This failure persisted over multiple escalation attempts across a sustained period of more than three months.
- 27.** The Respondents' inaction constitutes a failure to discharge their fiduciary and statutory duties.

8. DIRECT CONSEQUENCES OF THE FAILURE

W. M. B. J. M.

28. As a result of the unlawful payroll deduction, I suffered a material and sustained reduction in income.
29. Despite formal escalation, the deduction was not remedied, and the financial prejudice continued.
30. As a direct consequence of this continued financial deprivation:
- 30.1 I was forced to incur debt in order to meet basic living expenses;
 - 30.2 My financial position deteriorated progressively;
 - 30.3 I became exposed to high-risk and predatory lending practices; and
 - 30.4 I am currently facing confirmed eviction from my residence at 15 Bellevue Street, Voorbrug, Cape Town, 7100, at the end of March 2026.
31. The harm described above was reasonably foreseeable and would likely have been prevented or mitigated had the Respondents taken reasonable steps upon receipt of the P1 Material Risk Report.
32. Additionally, my South African Nursing Council registration has lapsed as a direct consequence of the financial deprivation caused by the unlawful deduction, rendering me unable to practise as a Registered Nurse. This is an irreversible professional harm that extends with every week of delay.

9. REGULATORY AND FINANCIAL RISK EXPOSURE

33. The matters escalated were not limited to an isolated payroll issue but gave rise to broader governance and regulatory risks, of which the Respondents were formally notified.
34. These included:
- 34.1 Potential regulatory non-compliance and misrepresentation under the Broad-Based Black Economic Empowerment Act 53 of 2003, arising from the systematic suppression of the Applicant's specialist designation for scorecard purposes while his NQF Level 8 qualifications were utilised for Skills Development and Management Control indicators (B-BBEE fronting);

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- 34.2** Exposure to statutory penalties, including fines calculated as a percentage of annual turnover — a maximum fine of approximately R580,000,000 (10% of annual turnover) under the B-BBEE Act;
- 34.3** Reputational and compliance risks associated with empowerment legislation; and
- 34.4** Foreseeable litigation risk arising from unresolved unlawful conduct, including CCMA proceedings (Certificates of Non-Resolution WECT23564-25 and WECT24486-25, issued 9 January 2026).
- 35.** Evidence supporting these risks is annexed hereto marked "Annexure F", comprising the written admission of the Sixth Respondent's Senior HR Business Partner dated 19 January 2026 confirming the B-BBEE naming convention mechanism.
- 36.** The Respondents were placed on notice of these risks through the P1 Material Risk Report and subsequent communications.
- 37.** Notwithstanding the seriousness of these risks, the Respondents failed to take reasonable steps to investigate or mitigate them.

9A. SECTION 60 OF THE EMPLOYMENT EQUITY ACT — DEEMED CONTRAVENTION AND INDIVIDUAL RESPONDENT LIABILITY

Note on paragraph numbering: This section is inserted as Section 9A following paragraph 37 of Section 9. The paragraphs in this section are deliberately numbered 37A through 37J to preserve the integrity of the existing paragraph numbering sequence.

PRIMARY STANDALONE GROUND

This section establishes a self-standing, statutory basis for the Section 162 delinquency finding sought, independent of and supplementary to all other grounds in this affidavit. It derives from Section 60 of the Employment Equity Act 55 of 1998 and is fully established on the documentary record before this Court.

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37A. I draw this Honourable Court's attention to Section 60 of the Employment Equity Act 55 of 1998 ("the EEA") as a distinct and self-contained ground for the relief sought, operating in conjunction with the Section 162 application.

37B. Section 60(1) of the EEA provides that where alleged discriminatory or unfair conduct by an employee is brought to the attention of the employer, a formal statutory duty to act is triggered. The P1 Material Risk Report filed on 9 December 2025 — annexed hereto marked "Annexure C" — constitutes precisely this notification. The report was delivered directly to the First, Second, Third and Fifth Respondents in their capacities as board-level oversight structures of the Sixth Respondent. The report documented, with 38 evidentiary attachments, the following EEA-relevant conduct: discrimination on the ground of gender identity; victimisation of a complainant; unlawful payroll deduction during a medically documented psychiatric admission; and thirty days of institutional silence on formal grievances.

37C. Section 60(2) of the EEA imposes on the employer — and by delegation on those board-level individuals entrusted with oversight — an obligation to consult all relevant parties and take the necessary steps to eliminate the alleged conduct and achieve EEA compliance. This obligation attached to each named individual Respondent upon receipt of the P1 Material Risk Report on 9 December 2025. It was not a discretionary governance choice. It was a statutory duty that arose automatically upon notification.

37D. The P1 Material Risk Report was explicit in this regard. At Section 4A of that report, under the heading "Legal and Regulatory Risks," the document stated with precision: "Personal liability for directors under Section 60 of EEA." The individual Respondents were not only placed on notice of the underlying conduct — they were placed on notice of the specific statutory mechanism that would render them personally liable if they failed to act. This notice was given in writing, with specificity, on 9 December 2025.

37E. The Respondents' response to this notification was as follows:

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37E.1 The First Respondent (Bruno Fernandes, Lead Independent Director) — no response across nine formal escalations spanning 9 December 2025 to 14 March 2026;

37E.2 The Second Respondent (Dr Nkateko Munisi, Chairperson: Social and Ethics Committee) — no response, notwithstanding that the P1 report was addressed directly to him in his capacity as Chair of the committee mandated to monitor EEA compliance;

37E.3 The Third Respondent (Ms Alice Le Roux, Chairperson: Audit and Risk Committee) — no response, notwithstanding that the P1 report was copied to her in her capacity as Chair of the committee responsible for overseeing material legal and reputational risk;

37E.4 The Fourth Respondent (Mr Gerald Van Wyk, CEO) — received the protected disclosure of 4 December 2025 directly and caused it to be de-escalated to the department under investigation, constituting active deflection rather than remediation; and

37E.5 The Fifth Respondent (LSM Mpumlwana, Group Company Secretary) — received each board escalation as the conduit for delivery and took no steps to ensure board-level engagement or compliance.

37F. Section 60(3) of the EEA provides that where an employer fails to take the necessary steps required by Section 60(2), the employer is deemed to have contravened the relevant provision of the Act. The failure of each named Respondent to take any step — investigative, corrective, or interim — in response to a formal Priority 1 risk escalation over a period of more than three months triggers this deeming provision. The Sixth Respondent, and by extension the individual Respondents in their directorial and officer capacities, are deemed to have contravened the EEA.

37G. Section 60(4) of the EEA places the burden on the employer to prove it did all that was reasonably practicable to ensure compliance. The Respondents cannot discharge this burden. Their documented response was: the filing of a sworn CCMA affidavit attacking the Applicant's character the day after receipt of the P1 report (10

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December 2025); the issuance of a written instruction by the Chief Risk Officer directing the Applicant to cease communicating with the board's independent oversight structures (18 December 2025); and the sustained institutional silence documented across Annexure G.

37H. The personal liability that flows from Section 60 read with the individual Respondents' documented receipt of the P1 report, their individual inaction, and their active participation in suppression and de-escalation, is not a matter of inference. It is a statutory consequence. The individual Respondents were warned of it in the very document that triggered their duty. They chose silence. Section 60(3) has converted that silence into a deemed contravention. That deemed contravention, committed by directors in the management of the company's affairs, constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and (d) of the Act.

37I. The governance bridge between the employment-level EEA contravention and the holding company directors' delinquency is established as follows: the P1 Material Risk Report was not an HR complaint. It was a formal governance escalation addressed to the named directors in their holding company board oversight capacities. The material risks it documented — including the B-BBEE exposure, litigation risk, and the reputational exposure of a JSE-listed entity — are risks to AfroCentric Investment Corporation Limited. The directors' failure to respond in their capacity as directors of that entity is delinquency in the management of that company's affairs within the meaning of Section 162 of the Act.

37J. I accordingly submit that the Section 60 deemed contravention provides a self-standing, statutory basis for the Section 162 delinquency finding sought, independent of and supplementary to the grounds set out elsewhere in this affidavit.

10. PATTERN OF INSTITUTIONAL SILENCE

38. The Respondents' conduct reflects a sustained pattern of non-responsiveness.

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- 39. Multiple formal notices and escalations were met with silence, non-engagement, or active deflection.
- 40. A consolidated timeline of escalations and the Respondents' responses is annexed hereto marked "Annexure G", documenting the escalation sequence from July 2025 to March 2026.
- 41. This pattern demonstrates a systemic failure of governance oversight at board level.

11. GROUNDS FOR RELIEF

- 42. The Respondents, having been placed on formal notice of a serious governance risk — including explicit notification of personal statutory liability under Section 60 of the EEA — failed to take any reasonable steps to address it.
- 43. Their conduct is inconsistent with the duties imposed under the Companies Act and the EEA, and gives rise to grounds for relief in terms of Section 162.
- 44. Such conduct amounts to, inter alia:
 - 44.1 Gross negligence;
 - 44.2 Wilful misconduct — particularly in circumstances where the statutory consequences of inaction were explicitly named in the notification the Respondents received on 9 December 2025; and
 - 44.3 A serious dereliction of fiduciary responsibility resulting in quantifiable and continuing harm to the Applicant.

12. RELIEF SOUGHT

- 45. I respectfully request that this Honourable Court grant the following relief:
 - 45.1 A declaration that the Section 60 EEA deemed contravention has been established as a primary standalone statutory ground for the relief sought, as set out in Part A1 of the Notice of Motion;

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B. J. M.*

- 45.2** Declaring the Respondents delinquent in terms of Section 162(5)(c) and/or (d) of the Act, with the delinquency declaration to take effect for a period not less than seven years in terms of Section 162(10) of the Act; alternatively
- 45.3** Placing the Respondents under probation in terms of Section 162(7) of the Act;
- 45.4** Granting consequential damages against the First to Fifth Respondents jointly and severally; and
- 45.5** Granting further and/or alternative relief as the Court deems fit.

13. URGENCY

- 46.** This application is brought as a matter of urgency in terms of Rule 6(12) of the Uniform Rules of Court. I respectfully submit that the matter is urgent and that I cannot be afforded substantial redress at a hearing in due course for the following reasons:
- 46.1** I face confirmed eviction from my residence at 15 Bellevue Street, Voorbrug, Cape Town, 7100, at the end of March 2026 — literally within days of the filing of this application.
 - 46.2** I currently have no income whatsoever, no running water in my home, and my personal property has already been physically removed by creditors as informal security for debt that was incurred solely as a direct and proximate consequence of the unlawful payroll deduction and the Respondents' failure to act.
 - 46.3** My South African Nursing Council (SANC) registration has lapsed as a direct result of the ongoing financial deprivation. I am therefore unable to practise as a Registered Nurse. Every week of further delay causes irreversible professional harm.
 - 46.4** The urgency is not self-created. It flows entirely from the Respondents' sustained institutional silence and their active failure to respond to the Priority 1 Material Risk Report of 9 December 2025 and the Final Good Faith Notice delivered to each of them on 14 March 2026.

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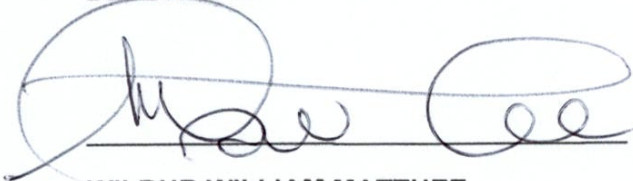
46.5 A hearing in the ordinary course will not afford me substantial redress. By the time a normal opposed motion roll date is allocated, the eviction will have been carried out and my deregistration from the SANC will have become permanent. The harm will already be irreversible.

14. CONCLUSION

47. This application is brought in good faith and is supported by documentary evidence generated by the Respondents' own systems, demonstrating: formal notice; the statutory Section 60 EEA deemed contravention; failure to act; active suppression; and resulting harm.

48. I respectfully submit that the Respondents' conduct warrants judicial intervention and that the Section 60 deemed contravention — established by operation of statute on the documents before this Court — provides an independent and determinative basis for the delinquency orders sought.

DEPONENT:

A handwritten signature in blue ink, appearing to read 'Wilbur Matthee', written over a horizontal line.

WILBUR WILLIAM MATTHEE

APPLICANT

I certify that the Deponent has acknowledged that the deponent knows and understands the contents of this affidavit, which was signed and sworn before me at

DELFT on this 19TH day of MARCH 2026
2026.

PASTOR BENJAMIN NASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 891 0844

COMMISSIONER OF OATHS

Full name: BENJAMIN JAMES NASEMOLA

Capacity / designation: BD 25513

Area of jurisdiction: DELT

SCHEDULE OF ANNEXURES

Annexure	Description	Bundle Page
"A"	Share Certificate — AfroCentric Investment Corporation Limited (JSE: ACT)	—
"B"	July 2025 Payslip — Normal Earnings R36,588.81 / Unlawful deduction R14,811.77 (40.47%)	—
"C" ★	GRC1: Priority 1 Material Risk Report — 9 December 2025 (38 attachments) — Section 60 EEA personal liability warning at Section 4A	—
"D1"	Formal Protected Disclosure to executive leadership (CEO Gerald Van Wyk), 4 December 2025	—
"D2"	Executive de-escalation email chain — Bongani Luvuno / Gerald Van Wyk, 5–8 December 2025	—
"D3"	GRC1: P1 Material Risk Report — Board escalation, 9 December 2025	—

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"D4"	GRC2: Board update attaching CCMA opposing affidavit, 11 December 2025	—
"D5"	Formal Notice of Resignation Due to Constructive Dismissal, 11 December 2025	—
"D6"	GRC3: Maximum Severity GRC Escalation (audio recording), 16 December 2025	—
"D7"	Exit document correspondence — UI-19 requests, 7–19 January 2026	—
"D8"	SAHRC Comprehensive Update — 11 institutions, 13 March 2026	—
"D9" ★	Final Good Faith Notice to Individual Respondents, 14 March 2026	—
"E" ★	CRO Suppression Email — instruction to cease communicating with directors, 18 December 2025	—
"F" ★	B-BBEE fronting evidence — Cheryl-Dawn Modern (Senior HR BP) written admission, 19 January 2026	—
"G"	Consolidated escalation timeline — July 2025 to March 2026	—

★ Critical evidence — refer to Practice Note, paragraph 5.

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ANNEXURE

“A”

Share Certificate

AfroCentric Investment Corporation Limited (JSE: ACT)

Date: —

Founding Affidavit: Para 8



AfroCentric Investment Corporation Limited

TRADED ¹:

SHARES	FSRs
150	.0000

TRADE PRICE:
R 0.8000

Wilbur Matthee
Account: **EasyEquities**
ZAR

Acc. number:
EE2114420-9889990
Trader: Wilbur Matthee

First World Trader
t/a EasyEquities
WeWork -
Coworking Space,
173 Oxford Road,
Rosebank,
Johannesburg,
South Africa, 2196
Reg No.
1999/021265/07
VAT No. 445 0255
759

ANNEXURE

“B”

July 2025 Payslip

Normal Earnings R36,588.81 | Unlawful deduction R14,811.77 (40.47%)

Date: July 2025

Founding Affidavit: Para 15

★ CRITICAL EVIDENCE — refer to Practice Note, paragraph 5

PO Box 1101, Florida Glen, 1708
 37 Conrad Street, Florida North,
 Roodepoort, 1709
 t +27 11 671 2000
 www.medscheme.com

Employee Identity Number	Matthee, Wilbur William(Wilbur),Mr. 8909035151087	Employer Name	Medscheme Holdings (Pty) Ltd
Employee Number	7074649	Grade	B4M1
Location	The Boulevard	Position	Care Coordinator.25
Hire Date	01-May-2024	Original Hire Date	01-May-2024
Assignment Number	7074649	Payroll	Medscheme Holdings (Permanent)
Employee Address	Street Number: 15 Street or Name of Farm: Bellevue Street Suburb or District: Voorbrug, Postal Code: 7100	Employer Address	The Boulevard 4th Floor Searle Street Cape Town 7925

Payroll Information		
Period End Date	Tax Period	Payment Frequency
31-Jul-2025	5	Calendar Month

Tax Information		
Tax Status	Tax Reference No	Pay Date
Normal	0694546243	23-JUL-2025

Summary of Payment		
Total Earnings	Total Deductions	Total Net Pay
21,777.04	6,097.75	15,679.29

Earnings	
Description	Amount
Normal Earnings	36,588.81
Unpaid Leave Recovery	(13,824.32)
Unpaid Leave	(987.45)

Deductions	
Description	Amount
Sanlam Funeral Cover	52.00
Bonitas EE	1,471.33
Sanlam Pension Fund EE	2,503.57
UIF Employee	177.12
PAYE	1,743.73
Access Tags Loss	150.00

Fringe Benefits and Additional Info	
Description	Amount
Medical Aid Bonitas ER	2,942.67
PHI Disability ER	469.00
Sanlam Pension Fund ER	2,536.95
UIF Employer Contribution	177.12
Group Life	258.70
Medical Aid Fringe Benefit	2,942.67
Medical Aid Tax Credit	728.00
Monthly Salary Info - CTC	42,796.13
PHI FBT	469.00
Retirement Funding Income %	78.00

YTD Accumulations & Balances	
Description	Amount
Medical Aid Tax Credit YTD	3,640.00
Medical Aid ER YTD	14,713.35
Medical Aid EE YTD	7,356.65
PAYE YTD	23,491.73
Normal Earnings YTD	181,133.44
Total Taxable Income YTD	161,080.84
UIF Employee Contribution YTD	885.60

Net Pay Distribution			
Payment Method	Bank Branch Code	Account Number	Amount
ACB	679000	10961611474	15,679.29

Message(s)
No Message(s) Found

ANNEXURE

“C”

GRC1: Priority 1 Material Risk Report

38 attachments | Section 4A: explicit s60 EEA personal liability warning | Board escalation

Date: 9 Dec 2025

Founding Affidavit: Para 17

★ CRITICAL EVIDENCE — refer to Practice Note, paragraph 5



CONFIDENTIAL – LEGAL PRIVILEGE_URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za
Cc: shadi.chuake@gmail.com, alic@aliceleroux.co.za, ferfam.bruno@gmail.com, lebohang.mpumlwa@afrocentrichealth.com

Tue, 09 Dec 2025 at 09:23

1. INTRODUCTION:

Dear Chairperson,

I write to you in your capacity as Chair of the Social & Ethics Committee regarding a matter of serious corporate governance failure that requires immediate board-level intervention. As an employee of Medscheme, a subsidiary of AfroCentric Health, I have been subjected to nine months of documented discrimination, victimization, and institutional failure to act.

Despite exhausting internal channels—including formal grievances to HR leading to executive level after 30 days of institutional silence—the misconduct continues unabated. With CCMA litigation now imminent (Case number: WECT23564-25), I bring this to your attention as a final attempt to resolve what represents not only severe personal harm but material legal, reputational, and operational risk to the company.

2. EXECUTIVE SUMMARY OF GOVERNANCE FAILURES

The core failures involve:

Governance Failure Specific Incident Date Evidence

Discrimination Public gender identity discrimination (“Wilma” incident) 23 Sept 2025 Att. B

Retaliation one of multiple incidents Doubled unpaid leave after discrimination complaint 25 Sept 2025 Att. C

Procedural failure senior management whitewashing complaint as “typo” after poor investigation 1 Oct 2025 Att. B

Institutional Silence 30+ days no response to second formal grievance from Hr and union Nov-Dec 2025 Att. D

Unlawful Conduct >40%salary deduction without consultation July 2025 Att. E

Duty of Care one of a few Failure Punitive response to medical emergency 20 May 2025 Att. F

3. KING IV PRINCIPLES VIOLATIONS

This matter engages multiple King IV Principles:

Principle 2 (Exercise ethical leadership):

- Senior management's whitewashing of a serious discrimination complaint
- Hr and union's 30-day silence on a formal grievances

Principle 3 (Responsible corporate citizenship):

- Failure to address discrimination against vulnerable employee
- Breach of Employment Equity Act and Labour Relations Act

Principle 14 (Stakeholder relationships):

- Complete breakdown in employee relations
- Failure to address legitimate stakeholder concerns

Principle 16 (Governance of risk):

- Unaddressed legal, reputational, and operational risks
- Failure of internal controls in grievance procedures

4. MATERIAL RISKS TO THE COMPANY

A. Legal & Regulatory Risks:

- Multiple violations of EEA, LRA, BCEA
- Potential fines up to R1.5 million or 10% of turnover (EEA)
- Personal liability for directors under Section 60 of EEA
- Pending CCMA case with high likelihood of success

B. Reputational Risks:

- Public discrimination finding against JSE-listed company
- Possible media exposure of institution failure to protect vulnerable employee
- Impact on B-BBEE certification (discrimination claims negatively score)
- Investor and client confidence erosion

C. Operational Risks:

- Toxic workplace culture evidenced by similar complaints
- Loss of staff
- Productivity impact from ongoing disputes

D. Financial Risks:

- Potential arbitration award: R3 - R4.5 million
- Legal costs: R500,000+
- Management time diversion: 200+ hours

5. EVIDENCE OF INSTITUTIONAL BAD FAITH

1. Whitewashing of Serious Complaint: Senior management declared a clear act of gender identity discrimination as a “typo” following poor investigation (Attachment B).
2. Retaliation Against Complainant one example: Manager doubled unpaid leave immediately after discrimination complaint (Attachment C).
3. Unlawful Financial Deduction: >40% salary cut without consultation during mental health leave (Attachment E).
4. Complete Institutional Silence: 30+ days no response to formal grievances followed escalation (Attachment D).
5. Procedural Obstruction: Refusal to provide meeting agenda, record meetings, or respond in writing to serious allegations resulting in escalation to ethics board member

6. REQUEST FOR BOARD-LEVEL INTERVENTION

Given the complete failure of management and HR structures, I request:

A. Immediate Actions :

1. Appointment of independent investigator to review entire matter
2. Suspension of involved manager pending investigation
3. Temporary removal of HRBP from any involvement in this matter

B. Board-Mediated Resolution Process:

1. Direct board-level mediation possibly before CCMA proceedings
2. Independent valuation of settlement by external experts
3. Governance review of HR and management practices

C. Governance Remediation:

1. Review of whistleblower and grievance procedures
2. Training on discrimination and ethical leadership
3. Cultural assessment of the division involved

7. PROPOSED RESOLUTION PATHWAY

To avoid protracted litigation and further reputational damage, I propose:

1. Board-Mediated Settlement: Direct involvement of Social & Ethics Committee
2. Independent Investigation: Legal firm to assess liability
3. Fair Settlement: Based on actual damages, statutory entitlements, and aggravated damages for institutional bad faith and financial ruin
4. Governance Reform: Commitment to systemic changes

8. ATTACHED EVIDENCE

Attachment A: Chronology of Key Events (1 page)

Attachment B: Discrimination Evidence – “Wilma” incident & HR whitewash

Attachment C: Retaliation Evidence – Doubled unpaid leave after complaint

Attachment D: Institutional Silence – 30-day grievance black hole

Attachment E: Unlawful Deduction - >40% salary cut without consultation

Attachment F: Medical Evidence – Work-related health impact

Attachment G: CCMA Referral Documents

9. URGENCY AND NEXT STEPS

Awaiting CCMA in-lamine/conciliation date. Without board intervention, this will proceed to public arbitration with guaranteed reputational damage.

I request an urgent meeting with the Social & Ethics Committee or its designated representatives by Friday 12:00 12 December 2025.

All communications should be directed to me via email [wilburmat@gmail.com] I will forward copies to my trusted advisor.

10. CONCLUSION

This is not merely an employment dispute but a significant governance failure involving discrimination, failure to act, systemic procedural abuse, and the devastating financial ruin of a protected employee. The board’s intervention is required to:

1. Uphold the company’s ethical commitments
2. Mitigate material risks
3. Demonstrate responsible leadership
4. Avoid certain reputational and financial damage

I remain available for immediate engagement.

Sincerely,

Wilbur William Matthee

Specialist nurse Health services management.

Medscheme(A division of AfroCentric Health).

wilburmat@gmail.com

38 attachments

-  **unpaid leave approved without com.png**
40 KB
-  **unpaid leave response.png**
71 KB
-  **actual reply on reporting MJ .png**
129 KB
-  **asking for clarity in pilot teams group2.png**
70 KB
-  **asking for clarity in pilot teams group2 (1).png**
70 KB
-  **asking for clarity in pilot teams group (2).png**
85 KB
-  **asking for clarity in pilot teams group3.png**
72 KB
-  **ATTACHMENT C (7)- Fw_ Long Calls and Working Overtime.pdf**
209 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE.pdf**
22 KB
-  **ATTACHMENT E (2)percent deduction illegal (1).pdf**
55 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated(1).pdf**
91 KB
-  **ATTACHMENT C (4) - Fw_ Request to leave office.pdf**
206 KB
-  **ADDITIONAL ATTACHMENT insubordination claim, intrrgity, values, transparency Wilbur Matthee Vs Mary-Ann Jones information request.pdf**
443 KB
-  **ATTACHMENT B (1)A.pdf**
335 KB
-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo.pdf**
205 KB
-  **ATTACHMENT A CHRONOLOGY OF KEY EVENTS.pdf**
28 KB
-  **ATTACHMENT C (3) - Fw_ Follow-Up on Unpaid Half-Day Leave – 25 September 2025.pdf**
399 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2.pdf**
21 KB

-  **ATTACHMENT B DISCRIMINATION EVIDENCE (EXCERPTS).pdf**
24 KB
-  **ATTACHMENT C (1)- Fw_ Regarding the Unpaid Leave Policy.pdf**
250 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions(1).pdf**
310 KB
-  **ADDITIONAL ATTACHMENT- Fw_ Leaving Work 20 May 2025.pdf**
204 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions.pdf**
310 KB
-  **ATTACHMENT E (3)payslip3.pdf**
118 KB
-  **ADDITIONAL ATTACHMENT No True Accommodation post mental helth admission Fw_ Meeting Feedback 16 April 2025.pdf**
173 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE(1).pdf**
22 KB
-  **Attachment C (2)- Fw_ Unpaid Leave 25 September 2025.pdf**
158 KB
-  **ATTACHMENT A (1)- Fw_ Chronological Hospital Admission Summary and Winter Work Hours Accommodation Request.pdf**
108 KB
-  **ATTACHMENT C (6)- Fw_ Wilbur not feeling well .pdf**
359 KB
-  **Attachement E (1)- Fw_ July 2025 Salary dispute, No staggering, over 40%.pdf**
437 KB
-  **ATTACHMENT F (1)Wilbur Matthee - letter to employer.pdf**
417 KB
-  **ATTACHMENT F _MEDICAL EVIDENCE.pdf**
23 KB
-  **ATTACHMENT E _ UNLAWFUL DEDUCTION.pdf**
24 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated.pdf**
91 KB
-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo(1).pdf**
205 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2(1).pdf**
21 KB
-  **ATTACHMENT B (1)B.pdf**
221 KB

The response from the remote server was:

550 Invalid Recipient - <https://community.mimecast.com/docs/DOC-1369#550>
[trgCii1IOviATenhk_5KAg.za95]

Wilbur William Matthee <wilburmat@gmail.com>
To: lebohang.mpumlwana@afrocentrichealth.com

Tue, 09 Dec 2025 at 19:26

Dear Lebohang,

I trust you are well, I am not sure whether you gave received my initial email with all attachment. If not please find them attached below.

With full email body.

Kind regards

Wilbur

[Quoted text hidden]

2 attachments



icon.png

1 KB



warning_triangle.png

466 B

ANNEXURE

“D1”

Formal Protected Disclosure to Executive Leadership

Addressed to CEO Gerald Van Wyk (Fourth Respondent)

Date: 4 Dec 2025

Founding Affidavit: Para 20 D1



Urgent intervention required

1 message

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Thu, 04 Dec 2025 at 12:21

Dear Executive Leadership,

This correspondence serves as my final and good-faith attempt to resolve, internally and without escalation, the severe and ongoing harm I have been subjected to as a direct result of the company’s repeated institutional failures.

Over the past months, I have experienced serious and documented misconduct, including:

1. Unlawful salary deductions exceeding 40% of my monthly income without my consent or consultation. This during a motivated mental health admission, awaiting a bed informed by the HRBP that the deduction was taken on the principle of no work no pay which did not require consultation.
2. Continuous intimidation, retaliation, and victimisation by my direct manager despite a lodged grievance. After a formal request to be temporary removal from her team. No action.
3. Awaiting feedback from manager as discrepancies found in up to 20% reduction in some cases of my monthly actual performance metrics that led to poor outcomes even missed opportunities in performance bonuses.
4. Prolonged silence and inaction from HR and senior leadership and union despite formal complaints. Currently +30days to date no response.

These actions have caused significant financial strain, forced me into a cycle of unexpected debt which i am struggling to manage, and resulted in severe psychological distress. My capacity to work in an environment that continues to permit such conduct has reached its limit.

Given the seriousness of these failures, I am formally requesting the restorative measures:

1. Paid Recuperation Leave & Guaranteed Reintegration

A period of fully paid special leave, allowing adequate time for psychological recovery.

Upon return, a permanent and immediate transfer to a new department.

2. Financial Settlement Determined by Risk & Compliance

I request a comprehensive financial settlement, independently assessed by the Head of Risk & Compliance, covering:

Financial losses caused by the unlawful deduction.

Debt incurred as a direct result of these actions.

Compensation for emotional distress, harassment, and institutional negligence.

The company's full legal exposure for:

Unfair labour practice

Discrimination

Failure to provide a safe working environment

Reputational and operational risks should the matter escalate externally.

3. Institutional Commitments

A written, irrevocable guarantee of no retaliation, present or future.

Next Steps

I am willing to meet with this leadership group and a neutral mediator within 14 days from date 04 December 2025.

If a signed agreement in principle is not provided by 14 working days, I will immediately proceed with the following simultaneous actions: As I feel I have exhausted all avenues this far to have the incidents resolved and this is my final resort.

1. File cases with the CCMA for unfair labour practices, and discrimination.

2. Lodge a formal complaint with the Department of Employment and Labour regarding the unlawful salary deduction.

3. Submit a complaint to the South African Human Rights Commission.

I am really at my breaking point now no motivation to come to work.

All evidence is already compiled and ready for submission.

I trust that the company will choose a constructive, internal resolution over a protracted and public legal dispute. I await your urgent response.

Kind regards,

Wilbur Matthee

This email is subject to a disclaimer which may be found on our website by clicking on this link:
https://www.medscheme.co.za/EX_Medscheme_VS07/Documents/PDF/Medscheme%20Limited%20Terms%20of%20Use.pdf.

If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za .

ANNEXURE

“D2”

Executive De-Escalation Email Chain

Bongani Luvuno / Gerald Van Wyk — disclosure returned to department under investigation

Date: 5–8 Dec 2025

Founding Affidavit: Para 20 D2



Fw: Confirmation of meeting: Regarding Formal Grievance and CCMA Referral [Case number: EWECT0125184368]

6 messages

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za> Sat, 06 Dec 2025 at 22:15
To: Wilbur William Matthee <wilburmat@gmail.com>

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This email is subject to a disclaimer which may be found on our website by clicking on this link:
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If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za .

----- Forwarded message -----
From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Bongani Luvuno <Bongani.Luvuno@medscheme.co.za>
Cc: Mapule Mashele <Mapule.Mashele@medscheme.co.za>, Gretchen Veldtman <Gretchen.Veldtman@afrocentrichealth.com>
Bcc:
Date: Fri, 5 Dec 2025 16:42:45 +0200
Subject: Re: Confirmation of meeting: Regarding Formal Grievance and CCMA Referral [Case number: EWECT0125184368]
Dear Bongani,

Thank you for your response. I note your inability to agree to the terms in my previous email, as the matter has only now been brought to your attention. However, this does not address the over 30 days of institutional silence on my formal grievances, which prompted the CCMA referral [EWECT0525003440].

For clarity, please specify which of my proposed conditions you disagree, along with the meeting's intended agenda and purpose. Without this, the meeting risks being unproductive.

I remain willing to attend on a without prejudice basis to my CCMA case, subject to receiving the above. If not, I will consider the process exhausted and focus on the CCMA proceedings.

Kind regards,
Wilbur Matthee

Get [Outlook for Android](#)

From: Bongani Luvuno <Bongani.Luvuno@medscheme.co.za>
Sent: Friday, December 5, 2025 4:04:20 PM
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Cc: Mapule Mashele <Mapule.Mashele@medscheme.co.za>; Gretchen Veldtman <Gretchen.Veldtman@afrocentrichealth.com>
Subject: RE: Confirmation of meeting: Regarding Formal Grievance and CCMA Referral [Case number: EWECT0125184368]

Good Day Wilbur

Unfortunately, I cannot agree to below as I was only made aware of your matter per the attached email you sent date 04/12/2025 @12:29pm

The proposal remains for an engagement with you on the 10th to discuss and determine next steps.

Kind regards,

Bongani

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Friday, December 5, 2025 2:18 PM
To: Bongani Luvuno <Bongani.Luvuno@medscheme.co.za>; Mapule Mashele <Mapule.Mashele@medscheme.co.za>; Gretchen Veldtman <Gretchen.Veldtman@afrocentrichealth.com>
Subject: Confirmation of meeting: Regarding Formal Grievance and CCMA Referral [Case number: EWECT0125184368]

Dear Bongani,

I acknowledge the request for a meeting on 10th December 2025 from 09:00 to 10:00.

I must note that this matter has been formally referred to the CCMA for conciliation due to the 30+ day institutional silence on my filed grievances. The case reference is [EWECT0525003440].

I will attend the meeting on the following basis:

1. The purpose is to receive the company's written, point-by-point response to my formal complaints of (a) unlawful salary deduction, (b) victimisation and intimidation, and (c) discrimination.
2. Given the legal nature of the dispute and my current medical state due to these events (I will provide a medical certificate), I will be recording the meeting to ensure an accurate record. I propose this in the interest of transparency for all parties.
3. I will not be re-litigating facts already submitted in writing. I am there to receive the company's official position.

Please confirm your agreement to these conditions and provide an agenda by [08 December 2024, 48hrs before meeting].

Regards,

Wilbur Matthee

 **Re_ Confirmation of meeting_ Regarding Formal Grievance and CCMA Referral [Case number_ EWECT0125184368].eml**
12 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Sun, 07 Dec 2025 at 16:46

[Quoted text hidden]

 **Re_ Confirmation of meeting_ Regarding Formal Grievance and CCMA Referral [Case number_ EWECT0125184368].eml**
12 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Mon, 08 Dec 2025 at 09:26

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This email is subject to a disclaimer which may be found on our website by clicking on this link:
[https://www.medscheme.co.za/EX_Medscheme_VS07/Documents/PDF/Medscheme%20Limited%](https://www.medscheme.co.za/EX_Medscheme_VS07/Documents/PDF/Medscheme%20Limited%20Terms%20and%20Conditions.pdf)

ANNEXURE

“D3”

GRC1: Priority 1 Material Risk Report (Board Copy)

First, Second, Third and Fifth Respondents — 38 attachments

Date: 9 Dec 2025

Founding Affidavit: Para 20 D3



CONFIDENTIAL – LEGAL PRIVILEGE_URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za
Cc: shadi.chuake@gmail.com, alice@aliceleroux.co.za, ferfam.bruno@gmail.com, lebohang.mpumlwa@afrocentrichealth.com

Tue, 09 Dec 2025 at 09:23

1. INTRODUCTION:

Dear Chairperson,

I write to you in your capacity as Chair of the Social & Ethics Committee regarding a matter of serious corporate governance failure that requires immediate board-level intervention. As an employee of Medscheme, a subsidiary of AfroCentric Health, I have been subjected to nine months of documented discrimination, victimization, and institutional failure to act.

Despite exhausting internal channels—including formal grievances to HR leading to executive level after 30 days of institutional silence—the misconduct continues unabated. With CCMA litigation now imminent (Case number: WECT23564-25), I bring this to your attention as a final attempt to resolve what represents not only severe personal harm but material legal, reputational, and operational risk to the company.

2. EXECUTIVE SUMMARY OF GOVERNANCE FAILURES

The core failures involve:

Governance Failure Specific Incident Date Evidence

Discrimination Public gender identity discrimination (“Wilma” incident) 23 Sept 2025 Att. B

Retaliation one of multiple incidents Doubled unpaid leave after discrimination complaint 25 Sept 2025 Att. C

Procedural failure senior management whitewashing complaint as “typo” after poor investigation 1 Oct 2025 Att. B

Institutional Silence 30+ days no response to second formal grievance from Hr and union Nov-Dec 2025 Att. D

Unlawful Conduct >40%salary deduction without consultation July 2025 Att. E

Duty of Care one of a few Failure Punitive response to medical emergency 20 May 2025 Att. F

3. KING IV PRINCIPLES VIOLATIONS

This matter engages multiple King IV Principles:

Principle 2 (Exercise ethical leadership):

- Senior management's whitewashing of a serious discrimination complaint
- Hr and union's 30-day silence on a formal grievances

Principle 3 (Responsible corporate citizenship):

- Failure to address discrimination against vulnerable employee
- Breach of Employment Equity Act and Labour Relations Act

Principle 14 (Stakeholder relationships):

- Complete breakdown in employee relations
- Failure to address legitimate stakeholder concerns

Principle 16 (Governance of risk):

- Unaddressed legal, reputational, and operational risks
- Failure of internal controls in grievance procedures

4. MATERIAL RISKS TO THE COMPANY

A. Legal & Regulatory Risks:

- Multiple violations of EEA, LRA, BCEA
- Potential fines up to R1.5 million or 10% of turnover (EEA)
- Personal liability for directors under Section 60 of EEA
- Pending CCMA case with high likelihood of success

B. Reputational Risks:

- Public discrimination finding against JSE-listed company
- Possible media exposure of institution failure to protect vulnerable employee
- Impact on B-BBEE certification (discrimination claims negatively score)
- Investor and client confidence erosion

C. Operational Risks:

- Toxic workplace culture evidenced by similar complaints
- Loss of staff
- Productivity impact from ongoing disputes

D. Financial Risks:

- Potential arbitration award: R3 - R4.5 million
- Legal costs: R500,000+
- Management time diversion: 200+ hours

5. EVIDENCE OF INSTITUTIONAL BAD FAITH

1. Whitewashing of Serious Complaint: Senior management declared a clear act of gender identity discrimination as a “typo” following poor investigation (Attachment B).
2. Retaliation Against Complainant one example: Manager doubled unpaid leave immediately after discrimination complaint (Attachment C).
3. Unlawful Financial Deduction: >40% salary cut without consultation during mental health leave (Attachment E).
4. Complete Institutional Silence: 30+ days no response to formal grievances followed escalation (Attachment D).
5. Procedural Obstruction: Refusal to provide meeting agenda, record meetings, or respond in writing to serious allegations resulting in escalation to ethics board member

6. REQUEST FOR BOARD-LEVEL INTERVENTION

Given the complete failure of management and HR structures, I request:

A. Immediate Actions :

1. Appointment of independent investigator to review entire matter
2. Suspension of involved manager pending investigation
3. Temporary removal of HRBP from any involvement in this matter

B. Board-Mediated Resolution Process:

1. Direct board-level mediation possibly before CCMA proceedings
2. Independent valuation of settlement by external experts
3. Governance review of HR and management practices

C. Governance Remediation:

1. Review of whistleblower and grievance procedures
2. Training on discrimination and ethical leadership
3. Cultural assessment of the division involved

7. PROPOSED RESOLUTION PATHWAY

To avoid protracted litigation and further reputational damage, I propose:

1. Board-Mediated Settlement: Direct involvement of Social & Ethics Committee
2. Independent Investigation: Legal firm to assess liability
3. Fair Settlement: Based on actual damages, statutory entitlements, and aggravated damages for institutional bad faith and financial ruin
4. Governance Reform: Commitment to systemic changes

8. ATTACHED EVIDENCE

Attachment A: Chronology of Key Events (1 page)

Attachment B: Discrimination Evidence – “Wilma” incident & HR whitewash

Attachment C: Retaliation Evidence – Doubled unpaid leave after complaint

Attachment D: Institutional Silence – 30-day grievance black hole

Attachment E: Unlawful Deduction - >40% salary cut without consultation

Attachment F: Medical Evidence – Work-related health impact

Attachment G: CCMA Referral Documents

9. URGENCY AND NEXT STEPS

Awaiting CCMA in-lamine/conciliation date. Without board intervention, this will proceed to public arbitration with guaranteed reputational damage.

I request an urgent meeting with the Social & Ethics Committee or its designated representatives by Friday 12:00 12 December 2025.

All communications should be directed to me via email [wilburmat@gmail.com] I will forward copies to my trusted advisor.

10. CONCLUSION

This is not merely an employment dispute but a significant governance failure involving discrimination, failure to act, systemic procedural abuse, and the devastating financial ruin of a protected employee. The board’s intervention is required to:

1. Uphold the company’s ethical commitments
2. Mitigate material risks
3. Demonstrate responsible leadership
4. Avoid certain reputational and financial damage

I remain available for immediate engagement.

Sincerely,

Wilbur William Matthee

Specialist nurse Health services management.

Medscheme(A division of AfroCentric Health).

wilburmat@gmail.com

38 attachments

-  **unpaid leave approved without com.png**
40 KB
-  **unpaid leave response.png**
71 KB
-  **actual reply on reporting MJ .png**
129 KB
-  **asking for clarity in pilot teams group2.png**
70 KB
-  **asking for clarity in pilot teams group2 (1).png**
70 KB
-  **asking for clarity in pilot teams group (2).png**
85 KB
-  **asking for clarity in pilot teams group3.png**
72 KB
-  **ATTACHMENT C (7)- Fw_ Long Calls and Working Overtime.pdf**
209 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE.pdf**
22 KB
-  **ATTACHMENT E (2)percent deduction illegal (1).pdf**
55 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated(1).pdf**
91 KB
-  **ATTACHMENT C (4) - Fw_ Request to leave office.pdf**
206 KB
-  **ADDITIONAL ATTACHMENT insubordination claim, intrrgity, values, transparency Wilbur Matthee Vs Mary-Ann Jones information request.pdf**
443 KB
-  **ATTACHMENT B (1)A.pdf**
335 KB
-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo.pdf**
205 KB
-  **ATTACHMENT A CHRONOLOGY OF KEY EVENTS.pdf**
28 KB
-  **ATTACHMENT C (3) - Fw_ Follow-Up on Unpaid Half-Day Leave – 25 September 2025.pdf**
399 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2.pdf**
21 KB

-  **ATTACHMENT B DISCRIMINATION EVIDENCE (EXCERPTS).pdf**
24 KB
-  **ATTACHMENT C (1)- Fw_ Regarding the Unpaid Leave Policy.pdf**
250 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions(1).pdf**
310 KB
-  **ADDITIONAL ATTACHMENT- Fw_ Leaving Work 20 May 2025.pdf**
204 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions.pdf**
310 KB
-  **ATTACHMENT E (3)payslip3.pdf**
118 KB
-  **ADDITIONAL ATTACHMENT No True Accommodation post mental helth admission Fw_ Meeting Feedback 16 April 2025.pdf**
173 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE(1).pdf**
22 KB
-  **Attachment C (2)- Fw_ Unpaid Leave 25 September 2025.pdf**
158 KB
-  **ATTACHMENT A (1)- Fw_ Chronological Hospital Admission Summary and Winter Work Hours Accommodation Request.pdf**
108 KB
-  **ATTACHMENT C (6)- Fw_ Wilbur not feeling well .pdf**
359 KB
-  **Attachement E (1)- Fw_ July 2025 Salary dispute, No staggering, over 40%.pdf**
437 KB
-  **ATTACHMENT F (1)Wilbur Matthee - letter to employer.pdf**
417 KB
-  **ATTACHMENT F _MEDICAL EVIDENCE.pdf**
23 KB
-  **ATTACHMENT E _ UNLAWFUL DEDUCTION.pdf**
24 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated.pdf**
91 KB
-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo(1).pdf**
205 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2(1).pdf**
21 KB
-  **ATTACHMENT B (1)B.pdf**
221 KB

The response from the remote server was:

550 Invalid Recipient - <https://community.mimecast.com/docs/DOC-1369#550>
[trgCii1IOviATenhk_5KAg.za95]

Wilbur William Matthee <wilburmat@gmail.com>
To: lebohang.mpumlwana@afrocentrichealth.com

Tue, 09 Dec 2025 at 19:26

Dear Lebohang,

I trust you are well, I am not sure whether you gave received my initial email with all attachment. If not please find them attached below.

With full email body.

Kind regards

Wilbur

[Quoted text hidden]

2 attachments



icon.png

1 KB



warning_triangle.png

466 B

ANNEXURE

“D4”

GRC2: Board Update — CCMA Opposing Affidavit

CCMA affidavit filed day after P1 Report — attacks whistleblower’s psychiatric diagnosis

Date: 11 Dec 2025

Founding Affidavit: Para 20 D4



URGENT UPDATE: Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Thu, 11 Dec 2025 at 03:33

Dear Chairs and Company Secretary,

I write to provide an urgent update directly relevant to the material governance risks I reported to your committees.

As you are aware, after exhausting all internal channels—including executive leadership who de-escalated the matter back to the source of the harm (narrative at the executive level has been procedurally closed)—I was forced to file a dispute with the CCMA and notify your committees of the systemic failures.

On 10 December 2025, the company's legal representative, Mr. Xollie Vincent Manyati, filed an Opposing Affidavit with the CCMA seeking to have my case dismissed on technical grounds (case WEC123564-25). A copy is attached for your immediate attention.

This document is not merely a legal filing; it is a tangible exhibit of the very institutional bad faith and procedural abuse I have been reporting. It demonstrates that the company's response to a serious discrimination and victimisation case is to:

1. Ignore the Substance Entirely: The affidavit makes no attempt to address the core allegations of discrimination ("Wilma" incident), victimisation, or the breach of duty of care. It focuses solely on a technical argument about timing, confirming the company's strategy is to avoid scrutiny of its conduct.
2. Engage in Factual Misrepresentation: It dismissively misstates my professional title, indicating a lack of diligence or a deliberate attempt to diminish my standing.
3. Attack the Complainant's Character: It contains unfounded personal attacks, labelling me as having an "untruthful character," which is a common tactic to intimidate and discredit rather than engage with facts.
4. Demonstrate a Punitive Posture: It shockingly requests that the CCMA dismiss my application "with cost," an extraordinary demand intended to punish an employee who is already in documented financial distress due to the company's actions.
5. Trivialise Severe Harm: It argues the company would suffer "severe prejudice" from the cost of travelling from Johannesburg to Cape Town for a hearing, while I am facing destitution and a health crisis. This juxtaposition reveals a profound failure of ethical perspective and duty of care.

Governance Implications:

This legal response is a direct outcome of the executive failure to intervene meaningfully. It signifies that the corporate apparatus is now being used to legally oppose an employee in crisis rather than to investigate and remediate the serious underlying issues. I have prepared a comprehensive point-by-point rebuttal to this affidavit for submission to the CCMA, which details the factual inaccuracies, continuous nature of the harm, and the bad faith inherent in the Respondent's opposition.

- Materially increases legal and reputational risk by creating a public record of aggressive opposition to a discrimination complainant.
- Validates the allegation of a cover-up and institutional bad faith.
- Directly engages the mandate of the Social & Ethics Committee (monitoring the company's activities regarding the EEA and ethical conduct) and the Risk Committee (overseeing material legal and reputational risk).

My urgent plea for interim relief to prevent destitution stands. This affidavit only heightens the immediacy of the required intervention.

I therefore reiterate my request for the Board's committees to:

1. Acknowledge receipt of this escalating evidence.
1. Intervene to ensure an independent, external investigation into the entire matter.
2. Mandate the provision of interim relief (paid leave, hardship payment) to prevent irreversible personal harm.
3. Review the strategy being employed by the company's legal and HR representatives in this matter.

The choice is now stark: the Board can oversee a fair, external process to resolve a serious internal failure, or it can allow the company's resources to be used to litigate against an employee it has harmed, guaranteeing greater public exposure and liability.

I remain available for any direct communication from the Board or its designated independent representative.

Please note: To prevent another procedural deadlock like the 30-day institutional silence I experienced previously, I require, at minimum, a formal acknowledgment of receipt of this update by Friday, 12 December 2025, at 12:00 sharp.

Sincerely,

Wilbur Matthee

Attached: Respondent's Opposing Affidavit (10 Dec 2025)



00206B9D9F42251210140327.pdf

251 KB

ANNEXURE

“D5”

Formal Notice of Constructive Dismissal

Invokes s186(1)(e) and s187(1)(h) LRA — delivered to directors personally by email

Date: 11–12 Dec 2025

Founding Affidavit: Para 20 D5

★ **CRITICAL EVIDENCE** — refer to Practice Note, paragraph 5



FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: lebohang.mpumlwana@afrocentrichealth.com
Cc: ferfam.bruno@gmail.com, alice@aliceleroux.co.za, Gretchen.veldman@afrocentrichealth.com, gerald.vanwyk@afrocentrichealth.com, munisinf@global.co.za
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Fri, 12 Dec 2025 at 03:29

TO:
The Board of Directors (via Company Secretary)
AFROCENTRIC HEALTH (RF) (PTY) LTD
37 Conrad Road, Florida North, 1709
CC:
Mr./Ms. Gerald Van Wyk (Chief Executive Officer)
Chair of the Audit & Risk Committee
Chair of the Social & Ethics Committee
Group Human Resources Department
DATE: 11 December 2025

Dear Board of Directors,

I, Wilbur Matthee, hereby give notice of the immediate termination of my contract of employment with Medscheme Holdings, effective 12 December 2025.

This resignation is not voluntary. I am terminating my employment because the employer, Medscheme Holdings(A Division of AfroCentric Health), has rendered the continuation of the employment relationship irretrievably intolerable through its malicious, calculated, and institutional conduct.

This termination constitutes an Automatically Unfair Constructive Dismissal in terms of the Labour Relations Act (LRA).

1. Grounds for Intolerability: Institutional Malice and Victimisation

The conditions rendering my continued employment intolerable are proven by the employer's formal legal submission in the matter of Wilbur Matthee and Medscheme Holdings (CCMA Case Ref. Number: WECT23364-25), specifically the Respondent's Answering Affidavit signed under oath on 10 December 2025.

The Affidavit contains specific statements that constitute severe and ongoing occupational detriment, victimisation, and unfair labour practice, including:

Malicious Character Attacks: The Affidavit labels me as having an "untruthful character," engaging in a "fishing expedition," and acting with "sloppiness and lack of regard" for the Commission. This ad hominem attack, under oath, fundamentally destroys the trust and confidence necessary for any employment relationship.

Abuse of Process: The document constitutes an abuse of the CCMA's services by employing tactics designed to discredit and cause further financial harm, rather than engaging in a good faith legal defence.

Institutionalised Victimisation: The Affidavit explicitly dismisses my claims of victimisation and mental health issues as having "no relevance" and being used to "sensationalize" the dispute (Sections 6.3 and 8.5). This demonstrates that the victimisation is ongoing, officially sanctioned, and institutionalised through the Respondent's legal representation.

2. Legal Basis: Automatically Unfair Constructive Dismissal

The employer's conduct, as documented in the sworn Affidavit, makes this termination an Automatically Unfair Constructive Dismissal in terms of the following sections of the Labour Relations Act (LRA):

Section 186(1)(e): The employee terminated the contract of employment because the employer made continued employment intolerable.

Section 187(1)(h): The reason for the employer's conduct is directly linked to an act of retaliation against a Protected Disclosure (the P1 Material Risk Report and subsequent updates regarding discrimination and victimisation).

3. Conclusion and Formal Notice

The content of the Respondent's Opposing Affidavit eliminates any conceivable possibility of restoring the employment relationship. I consider myself to have been dismissed by the employer's malicious conduct.

I have already formally informed the Board of the governance failure related to this P1 risk and the ongoing victimisation. All further matters relating to this dispute, including the claim for maximum compensation and a demand for punitive costs (Attorney-and-Client scale), will be handled at the CCMA/Labour Court, and via my External Whistleblower disclosures to the JSE, FSCA, CMS, DEPARTMENT OF EMPLOYMENT & LABOUR - INSPECTION & ENFORCEMENT + B-BBEE, . Pending complete governance failure.

Yours sincerely,

Wilbur Matthee

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: wilburmat@gmail.com

Fri, 12 Dec 2025 at 03:30



Address not found

Your message wasn't delivered to
Gretchen.veldman@afrocentrichealth.com
because the address couldn't be found, or is
unable to receive mail.

ANNEXURE

“D6”

GRC3: Maximum Severity GRC Escalation

Audio recording: manager states ethical refusal is “insubordination”

Date: 16 Dec 2025

Founding Affidavit: Para 20 D6



MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alice@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Tue, 16 Dec 2025 at 09:35

PART 1: FORMAL MEMORANDUM TO THE BOARD AUDIT & RISK COMMITTEE

1. Purpose of Escalation

This memorandum constitutes a Maximum Severity Governance, Risk, and Compliance (GRC) escalation to the Board Audit & Risk Committee. It follows confirmed management interference in a concluded investigation, suppression of substantiated findings, retaliatory conduct against the investigator, and failure to implement corrective action.

Collectively, these actions have exposed the organisation to material regulatory, labour, ethical, and reputational risk, and are directly causing psychological harm to staff.

2. Key Findings

Member complaint arose from a documented system failure, not member non-adherence.

Ethical refusal to misattribute fault resulted in:

- Loss of access to the investigation
- Blocked corrective action and apology
- Improper closure of the case
- Responsibility shifted to the member despite clear system-level fault

Evidence of Retaliation: Audio recording of MaryAnn Jones explicitly stating the refusal “is insubordination.”

3. Governance, Legal, and Regulatory Exposure

King IV Principles 1, 2, 4, 13 – ethical leadership, accountability, risk governance, compliance

ISO 31000 / ISO 45003 – failure to monitor risk and prevent psychosocial harm

OHSA s8 & LRA ss185–188 – unsafe work environment, unfair labour practice

Protected Disclosures Act (PDA) – retaliation against ethical refusal / whistleblowing

Regulatory Reach: Eight regulators will require explanation for inaction

Explicit Warning: Failure to act will be considered a miscarriage of ethical justice and an approval of director-level psychological harm, with PDA fully covered in the master evidence dossier submission scheduled for 17 December 2025, 10:00. AS MENTIONED 12 December 2025 in constructive dismissal notice email.

4. Immediate Board-Level Actions Required

- 1. Administrative Suspension – Mary-Ann Jones & Lisa Mari pending independent investigation.
- 2. Corrective Member Communication – Immediate apology acknowledging system fault
- 4. Activation of Governance Controls,ethical deviation review protocol, management risk training

5. Conditional Resolution & Master Dossier

Compliance Window: 24 hours for documented proof of required actions

Outcome: This case can be removed from the master evidence dossier to regulators

Failure: Full dossier, covering PDA and psychological harm, will be shared with all eight regulators on 17 December 2025 at 10:00

6. Accountability Notice

Failure to act, suppress findings, or misattribute fault will be regarded as reckless governance, exposing Board and management to personal liability, regulatory escalation, and labour proceedings. Timely, transparent action restores trust, demonstrates accountability, and prevents unnecessary escalation.

Submitted in good faith, fulfilling statutory, professional, and ethical duties.

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

PART 2: ACCOMPANYING EMAIL TO BOARD

Subject: Urgent Maximum Severity GRC Escalation – Immediate Action Required

Dear Chairperson and Board Members,

Attached is a Maximum Severity Governance, Risk, and Compliance memorandum regarding confirmed management interference, suppression of findings, and retaliation against the investigator. This matter exposes the organisation to regulatory, labour, ethical, and reputational risk, and is causing active psychological harm to staff.

The memorandum includes:

Evidence of retaliation and ethical misconduct

Required immediate interventions

Conditional resolution path to prevent escalation to regulators

Explicit warning that failure to act constitutes a miscarriage of ethical justice and approval of director-level psychological harm

Action Required:

Please provide documented proof of corrective action and governance control implementation within 24 hours. Timely resolution will allow this matter to be removed from the master evidence dossier, which is otherwise scheduled for submission to eight regulators on 17 December 2025 at 10:00.

This escalation is submitted in full compliance with statutory, professional, and ethical duties. Immediate attention and decisive action are required to prevent further organisational, regulatory, and legal exposure.

Respectfully,
Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

> Accountability Notice:

This correspondence constitutes a formal notice of identified risk. Retaliation, obstruction, or failure to act in accordance with governance and risk management obligations may expose the organisation and/or individuals to regulatory, legal, and ethical consequences.

Important Accountability Notice:

MAXIMUM SEVERITY GRC ENFORCEMENT NOTICE – KING IV | ISO | OHSA | LRA

This enforcement notice is issued in my capacity as a Specialist Nurse and Health Services Manager responsible for Governance, Risk, and Psychosocial Safety, following confirmation that substantiated investigative findings were deliberately disregarded, corrective action and an approved apology were obstructed, the investigator was denied further access to the matter, and responsibility was improperly shifted to a member despite clear system-level causation. Such conduct constitutes a material breach of King IV Principles 1, 2, 4, and 13 (ethical leadership, accountability, risk governance, and compliance), ISO 31000 (failure to identify, treat, and monitor risk), ISO 45003 (failure to prevent psychosocial harm), Section 8 of the Occupational Health and Safety Act (duty to provide and maintain a work environment that is safe and without risk), and Sections 185, 186, and 188 of the Labour Relations Act (unfair conduct, detriment, and managerial misconduct). Immediate written confirmation is required before close of business today that the identified risk has been actioned, corrective and preventative controls implemented, member harm remedied, and management-level accountability assigned. Any failure to confirm resolution, or any further attempt to suppress findings, misattribute fault, or close the matter without corrective action, will be regarded as reckless governance and will expose accountable officials to personal liability, regulatory escalation, labour proceedings, and external oversight.

2 attachments

 Screen_Recording_20251216_091751_InShot.mp4
2 MB

Wed, 17 Dec 2025 at 08:23

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com

Dear Chairperson and Board Members,

I am writing to formally retract the email and attached memorandum sent earlier 16 December 2025, titled "Urgent Maximum Severity GRC Escalation – Immediate Action Required," regarding Case [GEMS 000655789 Dependent 02].

This retraction is due to the email being sent on a public holiday, which invalidates the specified timeline and compliance window outlined in the document. As such, please disregard the formal escalation and any associated deadlines.

However, at your discretion, you may still use the information provided to correct the incident and implement any necessary remedial actions, as the underlying concerns remain relevant.

I apologize for any inconvenience this may cause and appreciate your understanding.

Should you require further clarification or discussion, please let me know.

Respectfully,

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

Accountability Notice:
>This retraction does not waive any statutory, professional, or ethical duties and is issued in good faith to ensure procedural accuracy.
[Quoted text hidden]

Thu, 18 Dec 2025 at 10

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>
To: Wilbur William Matthee <wilburmat@gmail.com>

Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They've seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.

Regards,



Monwabisi Kula
Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140
Monwabisi.Kula@afrocentrichealth.com
37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709
www.afrocentric.za.com



ANNEXURE

“D7”

UI-19 and Statutory Document Requests

Requests for statutory termination documents — ignored or stalled

Date: 7–19 Jan 2026

Founding Affidavit: Para 20 D7



Request for Assistance: UI-19 Forms and Umbrella fund Benefit Documents

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Wed, 07 Jan 2026 at 14:28

Dear Cheryl-Dawn,

I hope you are having a good week.

I am writing to kindly request your assistance with the necessary documentation required for my Unemployment Insurance Fund (UIF) application.

To help me meet my immediate financial needs and begin the claims process, could you please provide the completed UI-19 form and any other relevant exit documents?

Additionally, please let me know if there are any specific forms I need to complete from my side, or if you require any updated information (such as my current contact details or banking confirmation) to finalize these papers.

Thank you very much for your time and for helping me with this transition. I look forward to hearing from you.

Best regards,

Sr. W. Matthee

Nurse Specialist Health Services Management, Risk And Psychosocial Safety.

SRN. Com Health, Psychiatry, Midwifery; BTech; Bcur HNM; Post Grad HSM.



Retirement forms and Uif forms

2 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Sipokazi.Makaula@afrocentrichealth.com

Wed, 14 Jan 2026 at 10:46

Dear Sipikazi,

I trust you are well. I am just doing a follow up on my retirement claim forms and UIF forms. Could you kindly assist with these at your earliest convenience.

Much appreciated and thank you for your assistance in this matter.

Best regards

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>

Thu, 15 Jan 2026 at 18:57

Good day ,

I hope you are well.

Please share your details Name , Surname, ID number , are you a exting employee or former employee, which business unit and your team lead/ managers name.

This will assist in me knowing how to best assist you.

Thank you.



Kind regards

Sipokazi Makaula
Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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CONFIDENTIALITY:



URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

5 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Sipokazi.Makaula@afrocentrichealth.com
Cc: Cheryl-DawnM@afrocentrichealth.com, Lindiwe.Miyambu@afrocentrichealth.com, Tebogo.Makoe@afrocentrichealth.com, Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>
Bcc: wilburmat@gmail.com

Thu, 15 Jan 2026 at 20:43

Dear Sipokazi,

I refer to your email dated 15 January 2026.

1. Rejection of Information Request:

Your request for my basic identity and employment details is rejected as a bad-faith stalling tactic. As a Human Capital Consultant, you have access to the Respondent's payroll records. Furthermore, the Respondent's legal representative, Mr. Xollie Vincent Manyati, authored a sworn Opposing Affidavit on 10 December 2025 (Case WECT23564-25) identifying me and my role.

2. Ignorance of Prior Requests:

Please note that I formally requested these documents from Cheryl-Dawn Modern on 7 January 2026. Her complete ignorance of that request and subsequent failure to provide the documents—despite my follow-up with you on 14 January—is a continuation of the institutional silence and victimization documented in my legal filings.

3. Evidence of UIF Non-Compliance (June 2025):

Attached is a screenshot from the uFiling portal showing that the Respondent failed to submit a declaration for June 2025. My payslip for that month reflects that UIF was deducted from my salary. This discrepancy constitutes a violation of the Unemployment Insurance Contributions Act. I require immediate proof of payment and an updated declaration for June 2025 to ensure my claim is not rejected by the Department of Employment and Labour (DEL).

4. Formal Notice to Leadership:

(To Lindiwe Miyambu, Tebogo Makoe, and Monwabisi Kula) Please be advised that I am formally filing my Founding Affidavit in the Labour Court on Tuesday, 20 January 2026. The systemic failure to provide my UI-19, retirement forms, and the missing June 2025 declaration will be included as evidence of institutional bad faith and continued occupational detriment.

5. Final Demand:

I require the following by 12:00 PM on Monday, 19 January 2026:

- My completed UI-19 form;
- My Service Certificate and Umbrella Fund Withdrawal Forms;
- Proof of UIF payment and declaration for June 2025.

Failure to comply will result in a formal complaint to the DEL and a request for a statutory audit.

MEDSCHEME HOLDINGS PTY LTD (202103 - 202702)		
March 2025 Salary: R40589.15 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	April 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	May 2025 Salary: R34637.82 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:
June 2025 No Information	July 2025 Salary: R27725.66 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	August 2025 Salary: R40562.53 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:
September 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	October 2025 Salary: R35625.28 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	November 2025 Salary: R36612.73 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za

Thu, 15 Jan 2026 at 20:44

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try resending the message later. If the problem continues, contact your email admin.

The following organization rejected your message: DU2PEPF00028D10.mail.protection.outlook.com.

Diagnostic information for administrators:

Generating server: ZABDCEXCAMPX05.medscheme.com

tebogo.makoe@afrocentrichealth.com

DU2PEPF00028D10.mail.protection.outlook.com

Remote Server returned '550 5.4.1 Recipient address rejected: Access denied. For more information see <https://aka.ms/EXOSmtpErrors> [DU2PEPF00028D10.eurprd03.prod.outlook.com 2026-01-15T18:44:31.446Z 08DE54082AEB94EB]'

Original message headers:

Received: from ZABDCEXCAMPX05.medscheme.com (172.27.164.159) by ZABDCEXCAMPX05.medscheme.com (172.27.164.159) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id

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[Quoted text hidden]

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sun, 18 Jan 2026 at 09:02

Good day Wilbur,

I hope you are well.

I apologise about the delay in your request.

I spoke with Xolile to help me identify you as per the information you provided below on your communication with Xolile.

Please note that due to your email being external It was important for me to ask Identity questions.

I was also unable to identify you via the external email and asked the Identity questions so I can give full details to the benefits team for your personalized exit documents.

Additionally your request is of a confidential status it was also important that I ask Identity questions so that there is no confidential breach.

A ResQ ticket has also been raised for your exit documents. The benefits team no longer works via email, they work via ResQ tickets for all queries.

Next steps

-Benefits will review and send your personalised exit documents

-Once I receive or Cheryl receives we will send it you using this email address .

Thank you .



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Thursday, January 15, 2026 8:43 PM
To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>

Subject: URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

This message originated from outside your organization

Dear Sipokazi,
[Quoted text hidden]
[Quoted text hidden]

Wilbur William Matthee <info@ethichawks.co.za>
To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sun, 18 Jan 2026 at 09:40

Dear Ms Makaula,

I acknowledge receipt of your email dated Sunday, 18 January 2026, regarding my request for statutory exit documents.

As indicated in my correspondence of Thursday, 15 January 2026, the deadline for provision of these documents is **Monday, 19 January 2026 at 12h00**. These documents are required to enable compliance with statutory obligations, including UIF processing.

I respectfully request that the Respondent ensure full compliance with this deadline to avoid unnecessary escalation. Please confirm that the benefits team will provide the personalised exit documents within the stipulated timeframe.

Thank you for your attention to this matter.

Kind regards,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)


[Quoted text hidden]

3 attachments

-  **1000206656.png**
158 KB
-  **Outlook-A black ba.png**
9 KB
-  **Outlook-qswwepqo.png**
5 KB

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Mon, 19 Jan 2026 at 11:38

Good day Wilbur,

I trust you are well.

Herewith please find feedback on your query:

- 1. UIF Declaration – June 2025**
The UIF declaration for June 2025 was submitted.
Please see the screenshot provided by Payroll as confirmation.

2. UIF Documentation

UIF documents have been attached for your reference.

Kindly note that UI-19 forms are only provided when the reason for leaving qualifies for UIF benefits.

Since your reason for leaving is recorded as Resignation, the Department of Employment and Labour does not process UIF claims for this category unless they explicitly request supporting documents.

3. Certificate of Service

Your Certificate of Service has been attached.

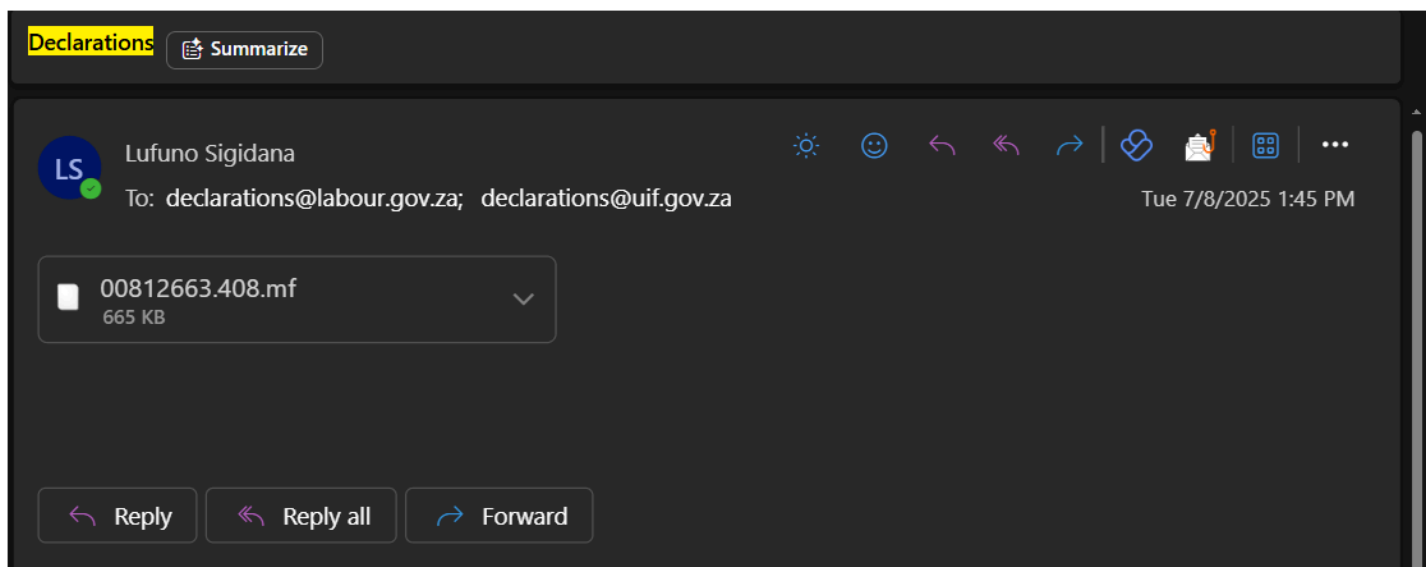
4. Provident Fund Withdrawal

The Benefits Team (Sebabatso) previously reached out to you regarding your provident fund withdrawal and attempted to contact you telephonically.

Please see the attached email for reference.

Thank you.

"8001,""UIWK","8110,""000812663","8200,8909035151087,8220,""7074649","8230,""Matthee","8240,""Wilbur William","8250,19890903,8260,20240501,8280,1,8300,40562.53,8310,17712,8320,354.24,8330,679000,8340,10961611474,8350,1"



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Sunday, January 18, 2026 9:40 AM

To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>

Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Subject: Re: URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

[Quoted text hidden]

----- Forwarded message -----

From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>

To: Natasha Johnson <Natasha.Johnson@medscheme.co.za>

Cc:

Bcc:

Date: Mon, 19 Jan 2026 07:12:24 +0000

Subject: Withdrawal Forms

Good day.

I trust all is well with you.

Please find attached email sent to the employee.

Thank you.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

+27 11 758 8880

Sebatatsos@medscheme.co.za

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

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----- Forwarded message -----

From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>

To: "wilburmat@gmail.com" <wilburmat@gmail.com>

Cc:

Bcc:

Date: Thu, 15 Jan 2026 16:54:15 +0000

Subject: Wilbur Matthee - Benefits Withdrawal

Dear Member

Kindly note that, effective 1 September 2024, Sanlam has implemented a new withdrawal process.

Attached is your personalized withdrawal form. Before completing it, please review the following:

Form 1: Basic Withdrawal

By completing this form, you may:

- Withdraw from your **vested** and **savings** pots.
- Preserve your **retirement** pot with Sanlam.

Form 2: Advanced Withdrawal

This form offers more flexible options:

- Preserve **100%** of all three pots (vested, savings, and retirement).
- Take full cash from the **vested** and **savings** pots and preserve or transfer the **retirement** pot.
- Withdraw a **portion** from the vested and savings pots and preserve or transfer the remaining balance.

Important: Please consult your Financial Advisor if you intend to transfer or in-fund your benefits to a new fund.

In addition to the completed form, kindly submit:

- A certified copy of your ID
- Proof of banking details

Please note that your claim will be submitted to Sanlam on **15 January 2025**, following the final contribution.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

+27 11 758 8880

Sebatatsos@medscheme.co.za

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7 attachments

-  **Matthee WW Certificate of Service.pdf**
150 KB
-  **Salary Schedule - Matthee W.pdf**
95 KB
-  **UI 19- Medscheme -Matthee W.pdf**
117 KB
-  **Withdrawal Forms.eml**
429 KB
-  **Wilbur Matthee - Benefits Withdrawal.eml**
360 KB
-  **AdvancedWithdrawalForm_82104113.pdf**
124 KB
-  **BasicWithdrawalForm_82104113.pdf**
81 KB



Correction Required – Certificate of Service Misrepresentation

4 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>, Lindiwe.Miyambu@afrocentrichealth.com
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo.Makoe@afrocentrichealth.com, nthabisengn@medscheme.co.za
Bcc: wilburmat@gmail.com

Mon, 19 Jan 2026 at 12:25

Dear Sipokazi,

I acknowledge receipt of the Certificate of Service. However, I must formally object to the fact that my role has been adjusted to align with the Opposing Affidavit dated 10 December 2025, rather than reflecting my actual employment records.

The Certificate of Service is a statutory document required for UIF and fund processing. It must be accurate and consistent with payroll and HR records, not tailored to litigation pleadings. Adjusting my role to fit an affidavit constitutes misrepresentation and undermines compliance with the Basic Conditions of Employment Act.

I further note that both you and Nthabiseng were present in the recorded Teams meeting titled “Naming Convention”, where the Operational Manager encouraged us to update our statistics. That meeting provides direct evidence that the employer had full knowledge of my role, identity, and responsibilities. Any deviation from those facts in the Certificate of Service is therefore unjustifiable.

I therefore request that the Benefits Team urgently issue a corrected Certificate of Service that reflects my true role and employment details, as per payroll and HR records and the recorded meeting. As a result, of this failure, that is evedince require you have not met your 12:00 deadline, I require correct Certificate of Service by close of business 19 January 2026.

Should this not be provided within the stipulated timeframe, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and request a statutory audit of the employer’s compliance.

Please confirm by return email before close of business.

Kind regards,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za

Mon, 19 Jan 2026 at 12:26

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X-OriginatorOrg: AfroCentricHealth.onmicrosoft.com
X-OrganizationHeadersPreserved: ZABDCEXCAMBX06.medscheme.com
X-CrossPremisesHeadersFilteredByDsnGenerator: ZABDCEXCAMBX06.medscheme.com

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Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Mon, 19 Jan 2026 at 15:40

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

Cheryl-Dawn Modern

Senior HR Business Partner

📞 +27 (011) 671 4819

✉ cheryl-dawnm@afrocentrichealth.com

📍 [37 Conrad St, Florida North, Roodepoort](#) | PO Box 1101, Florida Glen, 1709

🌐 www.afrocentric.za.com



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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Monday, January 19, 2026 12:25 PM

To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>

Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Tebogo Makoe <Tebogo.Makoe@afrocentrichealth.com> <Tebogo.Makoe@afrocentrichealth.com>; Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Subject: Correction Required – Certificate of Service Misrepresentation

This message originated from outside your organization

Dear Sipokazi,

[Quoted text hidden]

[Quoted text hidden]

 **image014.png**
29 KB

Wilbur William Matthee <info@ethichawks.co.za>

Mon, 19 Jan 2026 at 16:30

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula

<Sipokazi.Makaula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

Dear Cheryl-Dawn,

Thank you for the information provided.

You have stated that the company was compliant with the statutory timeline. However, the documents I received were incomplete, which means the company is in fact not compliant with statutory requirements.

For the record:

- I verbally accepted the updated role during the recorded Teams meeting titled "Naming Convention", attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager informed me to update my identifiers.
- I subsequently updated my professional signature to reflect the new title.
- Both the recording and my updated signature constitute legally binding confirmation of the naming convention.

Despite this, the Certificate of Service issued contradicts both the recorded meeting and my updated signature, and has been aligned with the employer's Opposing Affidavit dated 10 December 2025. This alignment is illegal, as statutory documents must reflect factual employment records, not be tailored to litigation pleadings.

As a result, the current Certificate of Service will form part of my legal proceedings. Unless a corrected version is provided by close of business today, 19 January 2026, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and include this matter in my Labour Court affidavit.

Kind regards,



Wilbur Mat... 2025/10/15



to me ▾



Medscheme

Sr. Wilbur W. Matthee

*(Nurse Specialist PGrad HSM, Btech Gen P
(Midw, Psych, Comm))*

Case Manager: GEMS Active Disease Risk
Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle street, Woodstock, 7925
- www.medscheme.com



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Reply



#

Forward



ANNEXURE

“D8”

SAHRC Comprehensive Update

Documents failure of 11 regulatory and statutory institutions

Date: 13 Mar 2026

Founding Affidavit: Para 20 D8

TO: The South African Human Rights Commission — Western Cape Provincial Office

REF:

DATE: 13 March 2026

RE: COMPREHENSIVE UPDATE — FORENSIC PAYROLL ANOMALY, CCMA INSTITUTIONAL BIAS, MULTI-BODY FAILURE, LABOUR COURT ACCESS OBSTRUCTION, AND CONFIRMED IMMINENT HOMELESSNESS

Further to SAHRC correspondence of 10 February 2026 and Applicant update of 5 March 2026 | Matthee v AfroCentric Health (RF) (Pty) Ltd & Others

Dear Commissioner / Legal Officer,

I write to provide a comprehensive update to this file. My update of 5 March 2026 documented the collapse of the DEL and CCMA processes and my filing of an urgent Labour Court application. Since that date, the situation has deteriorated significantly across every dimension — legally, financially, physically, and personally. I place each development on formal record with documentary precision. I ask the SAHRC to read this update not as a list of grievances but as a connected forensic account of what happens when every statutory and civil society safety net fails simultaneously around a formally disabled whistleblower.

1. FORENSIC FINDING: STATUTORY PAYROLL MISREPRESENTATION — JULY 2025

Cross-referencing my July 2025 payslip against the Respondents' official UIF/SARS declarations has revealed a material discrepancy that transforms the characterisation of the unlawful deduction from a labour relations dispute into a potential forensic matter warranting investigation by revenue and labour authorities.

The Documented Figures — July 2025

Gross salary on official payslip (July 2025):	R21,777.04
Salary declared to SARS / UIF by Respondents:	R27,725.66
Discrepancy:	R5,948.62
Location of R27,725.66 on payslip:	ABSENT — not in gross, net, or CTC
Month of discrepancy: deduction	July 2025 — identical pay cycle as unlawful 40.47%

The forensic significance of this finding cannot be overstated. The leave that gave rise to the deduction — the gap period between psychiatric admissions in June 2025 — should have been processed and deducted in the June 2025 pay run. The Respondents instead held that recovery over to July 2025, the new financial

year, and then processed the full R14,811.77 deduction in a single pay cycle. The declared salary figure of R27,725.66 appears to reflect a pre-deduction or notional figure — a salary the Respondents reported to government authorities as having been paid while simultaneously recovering R14,811.77 from my actual take-home pay.

The result is a nearly R6,000 gap between what the Respondents told the government they paid me and what I actually received. A statutory declaration to SARS or the UIF Fund that does not correspond to the actual net remuneration paid to an employee is not an administrative oversight. It is a misrepresentation to a government authority in a document required by law to be accurate. The fact that this misrepresentation arises in the same month as a documented unlawful deduction — and that the leave from which the deduction was derived arose in the previous financial year — is a structural anomaly that a competent forensic investigator cannot ignore.

I respectfully submit that this finding elevates the matter beyond a BCEA salary deduction dispute. It places the Respondents' payroll conduct in the category of potential statutory misrepresentation to government authorities, and it documents a deliberate structuring of the deduction across a financial year boundary in circumstances where the underlying leave event occurred in May 2025 -start June 2025.

2. CCMA INSTITUTIONAL BIAS — FULL ACCOUNT — AND PROVINCIAL COMMISSIONER COVER-UP

The SAHRC directed me in February 2026 to pursue CCMA remedies. I place on formal record the full account of what occurred at conciliation, and the cover-up that followed, so that the SAHRC may assess the quality of the remedy it directed me towards.

The conciliation hearing began with Commissioner Nthabiseng making the following statement immediately after introductions, before I had said a single substantive word: "Nothing here relates to the PDA." This was not a ruling made after hearing submissions. It was a declaration of a closed mind made at the threshold of the proceedings, before I had been permitted to speak. It foreclosed the most significant ground of my claim before the hearing began.

The Commissioner then refused to permit my opening statement. I was not allowed to place my position on the record in an orderly fashion. The Commissioner used the proceedings to create confusion, speaking over my submissions and introducing complications that had no basis in the documents before her. At no point did the Commissioner engage with my BCEA violation — the statutory 25% cap under Section 34(2) — or with the documentary evidence of the employer's own policy requiring prior HCBP consultation. She adopted the Respondents' "no work no pay" characterisation without subjecting it to any scrutiny. The commissioner 'so it was for no work no pay? Okay.

When I stated my negotiation ceiling of R2.5 million for a global settlement of all claims, the Commissioner laughed with the Respondents' representative. The Respondents then offered one month's salary. I requested a Certificate of Non-Resolution. The proceedings were a mockery.

The Johannesburg Coincidence

Commissioner Nthabiseng: Based in Johannesburg. Presided at Cape Town conciliation.

Respondents' representative: Flew in from Johannesburg for the hearing.

Observed conduct at conclusion: Commissioner and Respondents' representative walked out together, engaged in animated conversation about Johannesburg.

Treatment of Applicant: When I asked the location of the Labour Court, I was told to 'Google it or something like that.'

Provincial Commissioner's response: Confirmed that Commissioner Nthabiseng is from Johannesburg — offered as justification for failure of their most basic function to provide a HELPING HAND, not as a concern regarding the google you way to court statement..

I reported the Commissioner's conduct to the CCMA Provincial Senior Commissioner. Commissioner Nthabiseng who presided at my hearing. This is documented in the respective correspondence. The result is that Commissioner Nthabiseng conduct — the prejudgment of PDA relevance before hearing, the refusal of my opening statement, the open mockery of my settlement position, the cosy departure with the Respondents' representative, and the dismissive treatment at the door of the court — has never been investigated. The Provincial Commissioner's response constitutes a cover-up by institutional misdirection, whether deliberate or negligent.

3. DEPARTMENT OF EMPLOYMENT AND LABOUR — DOCUMENTED INACTION

The DEL has failed to act on any of the complaints before it. The "Integrated Inspection" instruction issued following my initial complaint has produced no outcome, no communication, and no enforcement. The Respondents, whose HR department has been copied on all relevant correspondence, have continued in statutory non-compliance throughout the entire period of DEL inaction — including continuing UIF non-remittance and a false written compliance representation made on 19 January 2026.

I reported the ongoing non-remittance to DEL Chief Inspectorate David Esau and Inspector Fazeka Nongalo on 16 February 2026. As of the last uFiling portal verification on 23 February 2026, the June 2025 UIF entry under Medscheme Holdings (Pty) Ltd continued to reflect 'No Information.' The DEL's mandate exists precisely to prevent this. It has not been exercised.

4. SAPS REFUSAL AND COMPLAINT TO NATIONAL POLICE COMMISSIONER

I attended at the South African Police Service on 23 February 2026 to open a criminal case regarding the Respondents' UIF non-remittance — a criminal offence under the Unemployment Insurance Contributions Act 4 of 2002 — and the false written compliance representation made by the Respondents on 19 January 2026. The SAPS verbally declined to open a case.

I have submitted a formal complaint to the National Police Commissioner in response to this refusal. The complaint documents that the SAPS declined to open a criminal docket in circumstances where a statutory criminal offence is proven by official government portal records, confirmed across four independent verification dates, and accompanied by a documented written false representation by the

employer. The refusal to open a case in these circumstances raises its own concerns about the equal application of criminal law to a JSE-listed employer and a destitute complainant.

5. OBSTRUCTION OF ACCESS TO JUSTICE — LABOUR COURT PORTAL FAILURE

This section documents what I can only describe as an institutional obstruction of my right of access to court — a right guaranteed under Section 34 of the Constitution. I place this on record in its full detail because the SAHRC's mandate encompasses access to justice, and what I have experienced at the hands of the Labour Court's administrative systems directly implicates that right.

My urgent high profile notice of motion application was prepared in full compliance with the Rules of the Labour Court, ready for filing by 5 March 2026. I attempted to file online. What followed was eight days of documented obstruction:

Labour Court Filing Obstruction — Documented Sequence

5 March 2026: Target filing date. Documents prepared in full compliance with Labour Court Rules.

5 March onwards: Court call centre contacted more than 7 times. Hold times 40–50 minutes per call. Calls dropped repeatedly. Staff dismissive.

Ongoing: Online portal profile deleted. Unable to log new case. Follow-up emails to the Registrar (Ms F Ismail) ignored.

12 March 2026: Formal notice to Registrar — case number required or matter would be escalated to the Judge President. Close of business passed. No response.

12 March 2026: Portal unexpectedly allowed loading of case as urgent ex parte application.

12 March 2026: Registrar rejected application. Stated reason: **'good day you put date.'**

12 March 2026: Returned to portal — unable to access. Password reset required 4 times. Application found to be missing from portal.

13 March 2026: Reviewed application, corrected the date field, resubmitted as urgent ex parte application.

13 March 2026 (today): Close of business. No case number received.

The reason given for rejection — **"good day you put date"** — was a technical formatting issue that could have been corrected by a registrar's clerk in seconds. Instead it was used to reject an urgent application filed by a self-represented, destitute, disabled applicant facing imminent homelessness, with no follow-up guidance, no assistance, and no acknowledgment of the urgency stated in the application itself.

I make no allegation of deliberate obstruction. I cannot determine whether this is systemic institutional dysfunction or something more targeted. What I can document is the factual sequence: eight days of failed attempts, seven call centre contacts, dropped calls, a deleted profile, an ignored registrar, a trivial rejection reason, and a portal that locks out the user after a rejection with no access to the rejected file[missing]. For a self-represented applicant with no legal infrastructure, no income, and an eviction deadline of end of March 2026, this sequence is not a procedural inconvenience. It is a denial of access to the only court with jurisdiction to grant the urgent relief I need to remain housed.

6. CONSOLIDATED RECORD OF INSTITUTIONAL FAILURES

Body	Documented Failure	Status
CCMA	Commissioner declared closed mind before hearing. Refused opening statement. Ignored BCEA statutory cap. Sided with employer. Mocked settlement figure. Departed with respondents' representative.	FAILED
CCMA Provincial Commissioner	Investigated commissioner. Cover-up by institutional misdirection. Presiding commissioner's conduct never investigated.	COVER-UP
Dept of Employment & Labour	Integrated Inspection instruction — no outcome. Seven-week silence. Active UIF non-remittance and BCEA violations continue unaddressed.	SILENT
SAPS	Verbal refusal to open criminal docket for documented UIF non-remittance offence and false compliance representation. Formal complaint lodged with National Police Commissioner.	REFUSED
Labour Court Registry	Eight days of failed portal access. 7+ call centre attempts. Calls dropped. Profile deleted. Registrar unresponsive. Trivial rejection reason for urgent application. Portal inaccessible post-rejection.	OBSTRUCTING
The Whistleblower House	Rejected application 50 minutes after receiving detailed rebuttal. Rebuttal not engaged. Invitation to reconsider — all engagement ceased.	SILENT
SANC	Deregistration caused by destitution flowing from unlawful deduction. Formal correspondence — no response. Cannot practise nursing in 2026. No response to the Professional misconduct complaint	SILENT
South African Pharmacy Council	Formal complaint submitted regarding professional and regulatory dimensions. No substantive response.	SILENT
Council for Medical Schemes	Acknowledged protected disclosure re Gexus-DMS systemic failure. Declined primary jurisdiction. Redirected to HPCSA — who redirected further. No body has accepted jurisdiction.	DEFLECTED
JSE	Jurisdictional declination issued 6 March 2026 (Ref JvS/166792, Nadia Jada). Documented and strategically noted. Yet the respondent declared no material risk. Only the change of Dr Munisi role from the investment portfolio to remuneration portfolio was reported the same board member who received my P1 risk reports	DECLINED
B-BBEE Commission	Case No. 5/2/2026 allocated. Summons request for Naming Convention recording pending. Active engagement.	ACTIVE

7. CONFIRMED IMMINENT HOMELESSNESS AND HUMANITARIAN CRISIS

I must be precise about what is happening to me physically and financially, because vague references to "financial difficulty" do not convey the reality. The SAHRC's constitutional mandate encompasses human dignity. What follows is a factual account of what the failure of every institution listed above has produced.

Confirmed Status — 13 March 2026

Accommodation: Four months rental arrears. Landlord has verbally confirmed — if no payment is received by end of March 2026, eviction will proceed. This is not a statement of risk. It is a confirmed deadline.

Personal property: Loan sharks — to whom I was forced to turn after the unlawful deduction eliminated my salary — have physically removed possessions from my residence as informal security. Items taken include smart televisions, electronics, and sealed boxed items held in storage.

Debt spiral: Interest compounds at rates that make full repayment structurally impossible at any income level I am likely to achieve. I am operating in a pure survival mode.

Running water: No running water at residence since January 2026.

Electricity: Supply at risk.

Income: None. No savings. No credit access. UIF inaccessible.

Retirement fund: R48,400 forcibly withdrawn to survive — savings of a decade gone.

Professional: SANC deregistration. Cannot practise as a nurse in 2026.

Academic: Accepted for CPUT Postgraduate Diploma in Occupational Health Nursing 2026 — unable to enrol.

Health: Formally diagnosed severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)). Functioning under extreme psychological duress.

Legal: Self-represented in 9 concurrent regulatory proceedings. No legal aid. No support.

The causal chain from the Respondents' conduct to this crisis is direct and documented. On 23 July 2025, the Respondents deducted R14,811.77 from my salary without consent, without consultation, in breach of their own policy, and in defiance of the statutory 25% cap — while holding a specialist psychiatrist's written warning of my vulnerability. That single action, compounded by the employer's subsequent bad faith and the complete failure of every institution I approached for help, has reduced me to the condition described above.

I also note the following for the record: the loan sharks did not take my possessions voluntarily. They arrived and removed them. A 75-year-old grandmother received a clinically incorrect non-adherence letter because a system that I disclosed as broken was never fixed. The same employer that generated that error characterised my disclosure as insubordination, entered it into my employment record, and later had its representative swear under oath that my specialist-diagnosed psychiatric condition was a "cynical excuse." These are not isolated wrongs. They form a single, coherent pattern of institutional conduct that this file documents in its entirety.

8. FORMAL REQUESTS TO THE SAHRC

- 8.1** That this comprehensive update be formally appended to the SAHRC file in its entirety, documenting the systemic multi-institutional failure to protect a whistleblower from induced destitution and professional erasure.
- 8.2** That the SAHRC note the forensic payroll finding: a declared salary of R27,725.66 against an actual payslip gross of R21,777.04 — a R5,948.62 discrepancy arising in the same month as the unlawful deduction — as a potential statutory misrepresentation to government authorities warranting referral to SARS and the DEL.

- 8.3** That the SAHRC note the full account of CCMA institutional bias — including the Commissioner's threshold declaration of a closed mind, refusal of opening statement, and documented post-hearing conduct — and the Provincial Commissioner's cover-up.
- 8.4** That the SAHRC note the Labour Court portal obstruction — eight days, seven call centre attempts, numerous deleted profile, ignored registrar correspondence, a trivial rejection, and portal inaccessibility — as a potential violation of the Section 34 constitutional right of access to court, particularly as it affects a self-represented, disabled, destitute applicant facing a confirmed end-of-March eviction.
- 8.5** That the SAHRC note the SAPS verbal refusal to open a criminal case on documented statutory offences and the formal complaint lodged with the National Police Commissioner.
- 8.6** That the SAHRC note the confirmed imminent eviction — verbally confirmed by the landlord for end of March 2026 — and the physical seizure of personal property by loan sharks, as direct consequences of the Respondents' unlawful conduct and the institutional failure that followed.
- 8.7** That the SAHRC consider whether the totality of this file — eleven institutional engagements, nine failures, a forensic payroll anomaly, a confirmed CCMA cover-up, an obstructed court filing, an imminent eviction, and an ongoing humanitarian crisis affecting a formally disabled whistleblower — warrants independent SAHRC investigation and intervention under the Commission's constitutional mandate to protect human dignity, equality, and access to justice.

I am a destitute, self-represented whistleblower facing confirmed eviction at the end of this month, living without running water, with personal possessions already seized, and with a formally diagnosed psychiatric disability. I have filed in every forum available to me. I have been ignored, obstructed, misdirected, and dismissed at every turn. The Labour Court is my last functioning avenue — and as of the close of business today, I do not yet have a case number.

I am available to provide all documentation immediately upon request.

Yours faithfully,

WILBUR WILLIAM MATTHEE

Founder — EthicHawks

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

info@ethichawks.co.za | 069 635 1435

ANNEXURE

“D9”

Final Good Faith Notice to Individual Respondents

Delivered via Company Secretary — no response received

Date: 14 Mar 2026

Founding Affidavit: Para 20 D9

★ **CRITICAL EVIDENCE — refer to Practice Note, paragraph 5**

TO: The Board of Directors — via LSM Mpumlwana, Group Company Secretary
AfroCentric Investment Corporation Limited | 37 Conrad Street, Florida Glen, Roodepoort, 1709

CC: Mr Bruno Fernandes | Dr Nkateko Munisi | Ms Alice Le Roux | Mr Gerald Van Wyk

COPY: Registrar, High Court of South Africa (pre-application record)

DATE: 14 March 2026

RE: FINAL GOOD FAITH NOTICE — RULE 6 — FATAL CORPORATE RISK | B-BBEE LICENCE JEOPARDY | PAYROLL FRAUD | SECTION 162 DIRECTOR DELINQUENCY | SAHRC-MONITORED PROCEEDINGS

Issued in good faith. Copied to the High Court as part of the pre-application record.

Dear Members of the Board,

This is not a complaint. It is not a grievance. It is a forensic record — documented, timestamped, and independently corroborated — of your individual and collective failure to discharge your fiduciary duties in the face of a Priority 1 Material Risk Report that you received, acknowledged, and chose to suppress.

Every fact in this document is objective. Every exhibit exists. Every regulatory body named is already in possession of the evidence. The High Court application that follows this notice does not require me to prove anything you have not already proven against yourselves.

You will note that this notice is shorter than my previous communications. That is intentional. The time for explanation has passed. What follows are facts. Read them slowly.

1. EXHIBIT A — THE P1 MATERIAL RISK REPORT — THE SMOKING GUN

Before anything else, the Board must understand what Exhibit A of the Section 162 High Court application is. It is not a payslip. It is not a CCMA transcript. It is not a uFiling screenshot.

FFFBECE

EXHIBIT A: The Priority 1 Material Risk Report

Filed: 9 December 2025 at 09:23

Subject: CONFIDENTIAL – LEGAL PRIVILEGE — URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

Delivered: To Dr Nkateko Munisi (Social & Ethics), Ms Alice Le Roux (Audit & Risk), Mr Bruno Fernandes (Lead Independent), via Company Secretary
Attachments: 38 documents — discrimination evidence, retaliation evidence, unlawful deduction, medical evidence, institutional silence record, CCMA referral
Board response: No response.

This is the document that formally placed every subsequent development on the board's conscience.

This is the document that gave the board's institutional silence its jet fuel.

This is the document that transforms nine non-responses into nine acts of directorial acquiescence.

This is the smoking gun — because it is yours, not mine.

The P1 Report warned you — in writing, with 38 attachments, on 9 December 2025 — of discrimination, victimisation, an unlawful 40.47% salary deduction, a psychiatrist's warning letter ignored, 30 days of institutional silence on formal grievances, and imminent CCMA litigation. You had everything. You chose nothing. Everything that follows in this notice is the documented consequence of that choice.

2. THE RECORD — WHAT YOU RECEIVED — WHAT YOU DID

Date	You Received	Your Response
Jul 2025	40.47% salary deduction. No consent. No HCBP consultation. Manager misrepresented group policy in writing.	No response.
11 Nov 2025	Written disclosure: deduction 'forcing me to incur additional debt.' Debt spiral and loan shark cycle verbally confirmed 12 Nov.	Confirmed deduction. No remedy. No action.
9 Dec 2025 — EXHIBIT A	P1 Material Risk Report. 38 attachments. Discrimination, victimisation, unlawful deduction, Dr Malan's letter, CCMA litigation, institutional silence. Board intervention formally requested.	No response.
10 Dec 2025	Manyathi files sworn CCMA affidavit — one day after your P1 report. PTSD dismissed as 'cynical excuse.' Applicant labelled 'untruthful character.' Costs demanded against a destitute employee.	This was your operational response to Exhibit A.
11 Dec 2025	Emergency update: Manyathi affidavit placed before all committee chairs. Characterised as institutional bad faith. Intervention urgently requested.	No response.
12 Dec 2025	Formal Notice of Constructive Dismissal. Board, CEO, Audit & Risk, Social & Ethics all copied.	No response.
16–17 Dec 2025	Maximum Severity GRC Escalation — GEMS 000655789 Dependent 02. Audio recording: MaryAnn Jones — refusal 'is insubordination.' 24-hour compliance window.	No response.
18 Dec 2025	CRO Kula in writing: 'stop sending emails to our directors — it gives an indication of impatience and unreasonableness.'	Active suppression of a P1 GRC escalation. By the Chief Risk Officer. In writing.
23 Dec 2025	Final criminal referral notice. 325-page bundle. JSE and FSCA receipt confirmed. Deadline: 24 Dec 12:00.	No response.

Date	You Received	Your Response
9 Jan 2026	Final internal board escalation.	No response.
13 Mar 2026	SAHRC formally updated. Complete forensic record now held by a Chapter 9 institution.	Pending.
14 Mar 2026	This notice.	Settlement deadline: COB Monday 16 March 2026.

Count the column on the right.
Nine formal escalations across three months.
Nine times you said nothing.
One time your CRO said stop.
That is your defence.
The High Court will read the same table.

3. THE CCMA PROCEEDINGS — A DOCUMENTED SHAM

When every internal avenue was exhausted, I went to the CCMA. What followed was not conciliation. It was a documented institutional failure that the South African Human Rights Commission has now formally noted in its file.

What Happened	The Record
Commissioner's opening statement	Before hearing a single word of evidence: 'Nothing here relates to the PDA.' Closed mind declared at threshold. Before introductions were complete.
Opening statement	Refused. Not permitted to place position on record.
BCEA s34(2) statutory cap	Never engaged. Employer's 'no work no pay' argument adopted without scrutiny.
Settlement position	I stated a global settlement ceiling of R2.5 million for all documented harm. The Commissioner laughed. Openly. In front of the Respondents' representative.
Respondents' offer	One month's salary. After nine months of documented discrimination, unlawful deduction, psychiatric harm, debt spiral, and destitution.
My response	Certificate of Non-Resolution requested. The proceedings were a mockery.
Post-hearing conduct	Commissioner and Respondents' representative walked out together. Animated conversation about Johannesburg. When I asked for the Labour Court address: 'Google it or something like that.'
Commissioner's origin	Johannesburg. Respondents' representative: also flew in from Johannesburg.
Provincial Commissioner report	Filed. Response Google it or something like that explained away as the Commissioner was from Johannesburg and didn't know the area. Cover-up — documented.
SAHRC notation	The Provincial Commissioner cover-up is now formally noted in the SAHRC file as a documented institutional failure.

The CCMA did not fail by accident. It was a war of attrition — and on that day, the institution joined the other side. The cover-up was not subtle. It was documented in the Provincial Commissioner's own response letter. That letter is now Exhibit C.

4. THE 10% WARNING — YOU WERE TOLD WHAT THIS WOULD COST

On 9 December 2025, the P1 Material Risk Report placed you on notice of the following specific financial exposure. This is not a new threat. This is a reminder of what you were warned about — in writing — on the day you chose silence.

FFF0F0

B-BBEE Act — Maximum Fine: 10% of annual turnover
AfroCentric annual revenue (2024 Integrated Report): Approximately R5.8 billion
10% of annual turnover: Approximately R580,000,000

This is not the fine for the Labour Court proceedings.
This is not the Section 162 personal liability.
This is the B-BBEE fine alone — for fronting — for one employee.

The B-BBEE Commission has allocated Case No. 5/02/2026.
The Form 8 response was filed on 13 March 2026.
The subpoena for the 2024/2025 B-BBEE verification certificate is pending.
The Naming Convention Teams recording subpoena is pending.

You were warned on 9 December 2025.
You chose silence.

The B-BBEE fine is not the ceiling. It is the floor. Fronting established under Section 13J(5) of the B-BBEE Act also constitutes a criminal offence subject to referral to SAPS and the National Prosecuting Authority. The Cheryl-Dawn Modern written admission — that the Naming Convention standard was deliberately withheld from the Complainant's department — is the institutional confession of the fronting mechanism. It is already before the Commission.

5. FORENSIC PAYROLL FINDINGS — JULY 2025

Finding	The Numbers
Unlawful deduction — BCEA s34(2)	Normal Earnings: R36,588.81 Deduction: R14,811.77 40.47% in single pay cycle Statutory cap: 25% Cap exceeded by 15.47 percentage points
Declared salary gap — statutory misrepresentation	Payslip Normal Earnings: R36,588.81 Declared to uFiling/SARS: R27,725.66 Gap: R8,863.15 Location on payslip: ABSENT — not reconcilable to any line item
False UIF compliance evidence	Respondent produced August 2025 payroll file (data string R40,562.53 — August salary) as proof of June 2025 compliance. June remains 'No Information' across 4 portal checks spanning 6 weeks.

Finding	The Numbers
Title perpetuation on payslip	Position: 'Care Coordinator.25' Grade B4M1. Recruited as: Specialist Care Manager NQF 8. Instructed to update to: Case Manager (Naming Convention May 2025). Same payroll feeds B-BBEE verification data.

6. THE OBJECTIVE PROOF — WHY THIS APPLICATION CANNOT FAIL

Director delinquency under Section 162 does not require me to prove bad intent. It requires proof of gross negligence, wilful misconduct, or reckless conduct in the management of a company's affairs. What I hold is not circumstantial. It is not subjective. It is documentary proof — generated by your own systems, signed by your own people, sent from your own email addresses.

FFFBECE

THE DOCUMENTS THAT WILL PROVE DIRECTOR DELINQUENCY IN THE HIGH COURT:

1. Exhibit A — P1 Material Risk Report (9 Dec 2025): Your own board received a formal Priority 1 risk escalation. You did nothing. This is the foundation.
2. The Manyathi Affidavit (10 Dec 2025): Filed one day after Exhibit A. Your operational response to a board-level risk report was to file a sworn attack on a disabled whistleblower.
3. The CRO Suppression Email (18 Dec 2025): Your Chief Risk Officer instructed a whistleblower to stop communicating with board oversight committees. In writing.
4. The Cheryl-Dawn Modern Admission (19 Jan 2026): Your Senior HR Business Partner confirmed in writing that the Naming Convention standard was deliberately withheld from the Complainant's department. This is the written confession of the fronting mechanism.
5. The False UIF Compliance Evidence (19 Jan 2026): Your Human Capital Consultant produced August payroll data as proof of June compliance. The data string proves the substitution.
6. The July 2025 Payslip: Your own document shows 40.47% deduction, R8,863.15 declared salary gap, and 'Care Coordinator' title — all in one document.
7. The SAHRC File (13 March 2026): A Chapter 9 constitutional institution now holds the complete documentary record of every escalation and every silence.
8. The B-BBEE Commission File (Case 5/02/2026): A state regulatory body is formally investigating fronting — on your own documentation.

Every document on this list was generated by your organisation.
None of it was fabricated. None of it was manipulated.
You built the case against yourselves.
I am merely the person presenting it to the High Court.

7. REGULATORY STATUS — 14 MARCH 2026

Body	Status	Result
Labour Court, Cape Town	Urgent ex parte application filed. Portal obstruction 5–13 March documented. Case number pending.	Active
SAHRC (Western Cape)	Comprehensive update 13 March 2026. CCMA cover-up, payroll fraud, portal obstruction, SAPS refusal — all formally on record.	Seized

Body	Status	Result
B-BBEE Commission	Case No. 5/02/2026. Form 8 filed 13 March 2026. Subpoenas pending: Naming Convention recording + 2024/2025 verification certificate.	Active
JSE	325-page bundle acknowledged. Jurisdictional declination 6 March 2026 (Ref JvS/166792).	Declined
FSCA	Formal complaint — breakdown of internal controls, executive de-escalation of protected disclosures.	Active
DEL	Integrated Inspection instructed. No enforcement action taken across 4+ weeks.	Inactive
SAPS / National Commissioner	Verbal refusal to open criminal docket. Formal complaint to National Police Commissioner lodged.	Escalated
CMS	Protected disclosure acknowledged. Redirected without accepting jurisdiction.	Deflected

8. SECTION 162 — THE APPLICATION — WHAT IT MEANS FOR YOU PERSONALLY

Application	Director delinquency — Section 162, Companies Act 71 of 2008
Relief sought	10 Year ban on professional directorships — each named director individually
Quantum (personal liability)	R3,000,000.00 — jointly and severally — compounded systemic and humanitarian harm
Costs	Punitive scale — attorney and client
Foundation	9 escalations. 9 non-responses. 1 active suppression. All documented. All timestamped.
The difference from Labour Court	The Labour Court pursues the company. Section 162 pursues you — individually, by name, for 10 years.
Status	Being prepared for service — Tuesday 17 March 2026 if no settlement or engagement by 16:00 COB Monday 16 March 2026.

9. MY SILENCE WAS NOT RETREAT — IT WAS NAVIGATION

You should know something about the period between 5 March and 13 March 2026. I am certain you noticed it. I am equally certain you interpreted it as weakness — as backing down, as bluffing, as the whistleblower running out of road.

You were wrong.

18 February 2026: Final warning issued to Respondents. 10-day response period communicated. Deadline: 4 March 2026.

4 March 2026: No response received. Deadline passed.

5 March 2026: Attempted to file urgent application. Portal profile deleted. Unable to log case.

5–12 March 2026: Call centre contacted more than 7 times. Hold times 40–50 minutes per call. Calls dropped. Staff dismissive.

Follow-up emails to Registrar Ms F Ismail sent. Ignored.

Urgent Notice of Motion was registered by the Registrar — then inaccessible.
12 March 2026: Final notice to Registrar — case number required or matter escalated to Judge President.
Close of business passed. No case number.
12 March 2026: Portal allowed loading as urgent ex parte application.
Registrar rejection reason: 'good day you put date.'
Portal then inaccessible. Password reset required 4 times to re-enter.
13 March 2026: Application corrected, resubmitted. Case number still pending close of business.

Every day of that eight-day window, I was not silent. I was fighting a court's own administrative system while facing eviction, without running water, without income, with loan sharks at my door. You almost certainly sat back and watched the deadline pass and concluded I had nothing.

What actually happened is this: the obstruction that was intended to stop me instead became evidence. The eight days of portal failures, deleted profiles, dropped calls, and a registrar's nonsensical rejection of an urgent application filed by a destitute disabled applicant — all of it was formally reported to the South African Human Rights Commission. The SAHRC has the Labour Court portal obstruction this is a potential violation of the Section 34 constitutional right of access to court.

You thought my silence meant I had stopped.
My silence meant I was documenting the obstruction.
The obstruction is now in a Chapter 9 institution's file.
The Chapter 9 institution is now standing beside me as I enter the court.

You did not delay this application.
You gave it a constitutional witness.

I note for the record that the SAHRC's mandate explicitly includes access to justice and the right to equality before the law. A self-represented, formally disabled, destitute applicant being systematically locked out of a court's filing system during a documented humanitarian emergency is not an administrative inconvenience. It is a constitutional matter. The SAHRC file reflects that. The High Court will see it.

10. SETTLEMENT — FINAL WINDOW

Settlement engagement or formal written initiation of settlement discussions required by:

16:00 — Monday, 16 March 2026.

If not received — High Court application proceeds to formal service at 09:00, Tuesday 17 March 2026.
At that moment: JSE disclosure obligations are triggered. The public record begins. The clock does not stop.

Contact: info@ethichawks.co.za | All correspondence should be in writing.

11. A FINAL OBSERVATION — FOR THE RECORD

There is a particular kind of chess player who, when they realise they are in check, tips the board over. They scatter the pieces, declare the game unfinished, and walk away confident that the absence of a visible board means the absence of a recorded position.

You tipped the board in July 2025 when you processed a 40.47% salary deduction without consultation on a formally disabled employee while a specialist psychiatrist's warning letter sat on your file. You tipped it again in December 2025 when your CRO instructed a formally protected whistleblower to stop sending emails to the board's independent oversight committees about a Priority 1 material risk report. You tipped it a third time when your representative filed a sworn affidavit the day after a board escalation, calling a specialist-diagnosed psychiatric condition a cynical excuse. You tipped it a fourth time when you issued a Certificate of Service bearing a title your own Senior HR Business Partner confirmed in writing had been deliberately withheld from my department. You tipped it a fifth time when you submitted August payroll data to the government as proof of June UIF compliance — a substitution visible in your own email's data string. And you tipped it a sixth time when a Labour Court portal mysteriously deleted my profiles during an urgent filing window, and a registrar rejected my application with the reason 'good day you put date.'

Each time you tipped the board, I picked up the pieces, documented their positions, and placed them on a new board in a new forum. The suppressed GRC escalation is now Exhibit A of the Section 162 application. The Manyathi affidavit is now the perjury reservation. The Cheryl-Dawn Modern admission is now the centrepiece of the B-BBEE Commission's formal investigation. The false UIF compliance evidence is now before the Department of Employment and Labour. The portal obstruction is now in the SAHRC file. The R8,863.15 payroll declaration gap is now a forensic finding before three regulatory bodies.

You did not need to make these mistakes. You volunteered them — one by one, across nine months, with remarkable consistency.

I did not come to this point because I wanted to be here. I came here because you left me no other place to stand. A destitute, formally disabled, self-represented whistleblower without running water, with his possessions taken by loan sharks, facing eviction at the end of this month, is not a profile of someone who had better options. This is what the board's collective silence produced. Let the record show that I told you — in writing, repeatedly, in advance, with evidence — exactly what would happen if you chose silence. You chose it anyway.

The board is still standing. All the pieces are accounted for. It is your move. The clock is running.

Issued in good faith, with full transparency, and with complete confidence in the documented record.

Sincerely,

WILBUR WILLIAM MATTHEE

Founder — EthicHawks | Specialist Nurse (NQF 8) | Forensic Governance Architect
RN | BCur HMN | BTech General Nursing | PGDip Health Services Management (NQF 8)
info@ethichawks.co.za | wilburmat@gmail.com | Tel: 069 635 1435 / 063 378 8782
www.ethichawks.co.za

EthicHawks — Forensic Governance & Compliance | Issued in Good Faith | Copied to High Court Record

ANNEXURE

“E”

CRO Suppression Email

Chief Risk Officer instructs Applicant to cease communicating with directors

Date: 18 Dec 2025

Founding Affidavit: Para 24

★ **CRITICAL EVIDENCE** — refer to Practice Note, paragraph 5



MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

1 message

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com> Thu, 18 Dec 2025 at 10:00
To: Wilbur William Matthee <wilburmat@gmail.com>

Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They've seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.

Regards,



Monwabisi Kula
Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140
Monwabisi.Kula@afrocentrichealth.com
37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709
www.afrocentric.za.com



From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: Wednesday, December 17, 2025 8:23 AM
To: Nkateko Munisi <munisinf@global.co.za>; Alice le Roux <alice@aliceleroux.co.za>; Bruno Fernandes <ferfam.bruno@gmail.com>
Cc: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>; Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>
Subject: Re: MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

This message originated from outside your organization

[Quoted text hidden]

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ANNEXURE

“F”

B-BBEE Fronting Evidence — Cheryl-Dawn Modern Written Admission

Senior HR BP confirms naming convention in writing — primary fronting evidence

Date: 19 Jan 2026

Founding Affidavit: Para 35

★ **CRITICAL EVIDENCE — refer to Practice Note, paragraph 5**

X-OriginatorOrg: AfroCentricHealth.onmicrosoft.com
X-OrganizationHeadersPreserved: ZABDCEXCAMBX06.medscheme.com
X-CrossPremisesHeadersFilteredByDsnGenerator: ZABDCEXCAMBX06.medscheme.com

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This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

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[Quoted text hidden]

Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Mon, 19 Jan 2026 at 15:40

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

ANNEXURE

“G”

Consolidated Escalation Timeline

Full chronology of escalations and absence of responses — July 2025 to March 2026

Date: Jul 2025–Mar 2026

Founding Affidavit: Para 40

Delivered: To Dr Nkateko Munisi (Social & Ethics), Ms Alice Le Roux (Audit & Risk), Mr Bruno Fernandes (Lead Independent), via Company Secretary
Attachments: 38 documents — discrimination evidence, retaliation evidence, unlawful deduction, medical evidence, institutional silence record, CCMA referral
Board response: No response.

This is the document that formally placed every subsequent development on the board's conscience.

This is the document that gave the board's institutional silence its jet fuel.

This is the document that transforms nine non-responses into nine acts of directorial acquiescence.

This is the smoking gun — because it is yours, not mine.

The P1 Report warned you — in writing, with 38 attachments, on 9 December 2025 — of discrimination, victimisation, an unlawful 40.47% salary deduction, a psychiatrist's warning letter ignored, 30 days of institutional silence on formal grievances, and imminent CCMA litigation. You had everything. You chose nothing. Everything that follows in this notice is the documented consequence of that choice.

2. THE RECORD — WHAT YOU RECEIVED — WHAT YOU DID

Date	You Received	Your Response
Jul 2025	40.47% salary deduction. No consent. No HCBP consultation. Manager misrepresented group policy in writing.	No response.
11 Nov 2025	Written disclosure: deduction 'forcing me to incur additional debt.' Debt spiral and loan shark cycle verbally confirmed 12 Nov.	Confirmed deduction. No remedy. No action.
9 Dec 2025 — EXHIBIT A	P1 Material Risk Report. 38 attachments. Discrimination, victimisation, unlawful deduction, Dr Malan's letter, CCMA litigation, institutional silence. Board intervention formally requested.	No response.
10 Dec 2025	Manyathi files sworn CCMA affidavit — one day after your P1 report. PTSD dismissed as 'cynical excuse.' Applicant labelled 'untruthful character.' Costs demanded against a destitute employee.	This was your operational response to Exhibit A.
11 Dec 2025	Emergency update: Manyathi affidavit placed before all committee chairs. Characterised as institutional bad faith. Intervention urgently requested.	No response.
12 Dec 2025	Formal Notice of Constructive Dismissal. Board, CEO, Audit & Risk, Social & Ethics all copied.	No response.
16–17 Dec 2025	Maximum Severity GRC Escalation — GEMS 000655789 Dependent 02. Audio recording: MaryAnn Jones — refusal 'is insubordination.' 24-hour compliance window.	No response.
18 Dec 2025	CRO Kula in writing: 'stop sending emails to our directors — it gives an indication of impatience and unreasonableness.'	Active suppression of a P1 GRC escalation. By the Chief Risk Officer. In writing.
23 Dec 2025	Final criminal referral notice. 325-page bundle. JSE and FSCA receipt confirmed. Deadline: 24 Dec 12:00.	No response.

Date	You Received	Your Response
9 Jan 2026	Final internal board escalation.	No response.
13 Mar 2026	SAHRC formally updated. Complete forensic record now held by a Chapter 9 institution.	Pending.
14 Mar 2026	This notice.	Settlement deadline: COB Monday 16 March 2026.

Count the column on the right.
Nine formal escalations across three months.
Nine times you said nothing.
One time your CRO said stop.
That is your defence.
The High Court will read the same table.

3. THE CCMA PROCEEDINGS — A DOCUMENTED SHAM

When every internal avenue was exhausted, I went to the CCMA. What followed was not conciliation. It was a documented institutional failure that the South African Human Rights Commission has now formally noted in its file.

What Happened	The Record
Commissioner's opening statement	Before hearing a single word of evidence: 'Nothing here relates to the PDA.' Closed mind declared at threshold. Before introductions were complete.
Opening statement	Refused. Not permitted to place position on record.
BCEA s34(2) statutory cap	Never engaged. Employer's 'no work no pay' argument adopted without scrutiny.
Settlement position	I stated a global settlement ceiling of R2.5 million for all documented harm. The Commissioner laughed. Openly. In front of the Respondents' representative.
Respondents' offer	One month's salary. After nine months of documented discrimination, unlawful deduction, psychiatric harm, debt spiral, and destitution.
My response	Certificate of Non-Resolution requested. The proceedings were a mockery.
Post-hearing conduct	Commissioner and Respondents' representative walked out together. Animated conversation about Johannesburg. When I asked for the Labour Court address: 'Google it or something like that.'
Commissioner's origin	Johannesburg. Respondents' representative: also flew in from Johannesburg.
Provincial Commissioner report	Filed. Response Google it or something like that explained away as the Commissioner was from Johannesburg and didn't know the area. Cover-up — documented.
SAHRC notation	The Provincial Commissioner cover-up is now formally noted in the SAHRC file as a documented institutional failure.